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Senate of Virginia Floor Session, Wednesday, March 11, 2026

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[00:01:40] This is the Senate of Virginia, Richmond, Virginia.

[00:02:54] Senate chamber.

[00:03:47] This is the Senate of Virginia, Richmond, Virginia.

[00:05:52] Chamber.

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[00:08:29] This is the Senate of Virginia, Richmond, Virginia.

[00:09:05] Chamber.

[00:10:05] This is the Senate of Virginia, Richmond, Virginia.

[00:12:57] Chamber.

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[00:14:25] This is the Senate of Virginia, Richmond, Virginia.

[00:15:24] Chamber.

[00:16:25] This is the Senate of Virginia, Richmond, Virginia.

[00:18:30] Senate chamber.

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[00:21:17] This is the Senate of Virginia, Richmond, Virginia, chamber.

[00:22:46] This is the Senate of Virginia, Richmond, Virginia, Senate chamber.

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[00:27:01] This is the Senate of Virginia, Richmond, Virginia, Senate Chamber.

[00:29:43] This is the Senate of Virginia, Richmond, Virginia, Senate Chamber.

[00:32:31] Be sure to stay connected with live sessions, catch up on past meetings, and explore our full archives anytime on the Senate of Virginia's YouTube channel.

[00:33:40] This is the Senate of Virginia, Richmond, Virginia.

[00:34:44] The Senate will come to order.

[00:35:11] The senators will please take their seats. Those persons not entitled to the privileges of the floor will retire to the gallery. The senators and all in attendance will please stand if you are able. We will be led in prayer today by Pastor Anthony Robinette from the Garage Ministry in Smithfield.

[00:35:33] And following the prayer, everyone will please remain standing. We'll be led in the Pledge of Allegiance to the Flag of the United States of America by Senate page Edwin Kotkamp. of richmond let us pray heavenly father we thank you for your presence here today lord we lift up all who are here today and ask for your blessings and your protection over each and every one of them lord we ask for your guidance today that you would keep all on the right path as they make decisions that affect many lord give them wisdom to navigate through complex challenges give them

[00:36:11] encourage, Lord, to stand for what is right, and may they have compassion and grace to be able to disagree without disrespect. We pray against the spirit of divisiveness and ask that you would give all a spirit of collaboration, for your word says a house divided against itself cannot stand.

[00:36:31] Therefore, we pray for this house to be united in righteousness for the sake of our state. We pray this this morning in Jesus' name. Amen. I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:36:59] Clerk will call the roll. All those present, please vote aye. Clerk will close the roll.

[00:37:48] You have a quorum, Madam President. Senate Journal for Tuesday, March 10, 2026. the senator from orange moves that the reading of the journal be waived all in favor of waiving the reading of the

journal will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 33 knows five ayes 33 knows five the reading of the journal is waived the clerk

[00:38:25] will report any communications from the house of delegates this chair recognizes the senator from

[00:38:30] Eastern Fairfax. Good morning, Madam President. Good morning. Madam President, I would move to waive reading the communication from the House. The question is, shall the reading of the communication be waived? All in favor of waiving the reading of the communication from the House of Delegates will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 32, noes 6.

[00:39:05] Ayes 32, noes 6. The reading of the communication is waived. The clerk will report any communications from the governor. We do not have any, Madam President. We've now arrived at the time in our morning hour when we have the honor of welcoming our distinguished guests who are joining us this morning in the gallery.

[00:39:29] I give my daily reminder about our procedure. A senator will rise and offer an introduction for his or her guest in the gallery. I will then offer the welcome of the Senate. I ask that we all hold our applause until I've had the opportunity to provide the Senate's welcome.

[00:39:49] The chair recognizes the senator from Isle of Wight. Thank you, Madam President. I rise for an introduction. The senator has the floor. Thank you, Madam President. Today's invocation was offered by Pastor Anthony Robinette from Smithfield, Virginia, where he runs a ministry called The Garage.

[00:40:05] What a prophetic name for a space that offers two dumps and restoration, although spiritually. He served as a chaplain for our local fire department, also as president as the Mission of Hope, a faith-based organization that houses and feeds the homeless. From being homeless on the streets of Hampton at just 15 to a whirlwind story that goes from living a life that led to brief incarceration to leading others out of homelessness, drug addiction, and on the road to recovery, his goal is each and every day to make sure someone is walking spiritually and leading them to Christ.

[00:40:36] Pastor Robinette may be covered in tattoos, but they tell a story, and he wants to make sure that all of us are covered in God's grace. So with that, I hope we would give Pastor Anthony Robinette the warm welcome of the Virginia Senate. Thank you, Senator, for that introduction, and thank you, Pastor Robinette, for joining us and offering your words of grace and prayer this morning.

[00:40:57] And as you and I spoke earlier this morning, because you've walked in the shoes of so many of those to whom you minister. We know that your commitment, your dedication and service is truly transforming the lives of all those who seek out your ministry. We thank you for your devoted service to so many. Senators, I ask that we give the warm welcome of the Senate to Pastor Anthony Robinette from Smithfield. The chair recognizes a senior senator from

[00:41:37] Virginia Beach. Thank you, Madam President. I rise for an introduction. The Senator has the floor. Madam President, it's my honor, no my privilege, to be able to introduce my seatmate's family who's joined us today. Today in the gallery we have Lori and Emily Sturdivant. Emily is 12 and Lori is a proud mom of five children, not four but five wonderful children. She's a former elementary school teacher emily though wants to place or or plays travel soccer for fcrva she's applying to be

[00:42:15] a page next year so she wants to check it out see what we do how we do it meet our pages talk to them she also went she's also interested in going to liberty university not just because she knows what she wants to do today but because of all the cool offerings they have from surfing to skiing there's all kinds of cool opportunities at liberty university not paid for and authorized by liberty universities or friends of liberty university um but anyways madam president uh it's my honor and privilege to introduce my seatmate in his family and uh i would hope that we would give

[00:42:51] them the warmest welcome of the senate thank you senator for the introduction and welcome to the family of the senator from colonial heights we are so delighted to see you both in the gallery And Emily, looks like you have big plans for your future ahead.

[00:43:06] We're so delighted that you already know what it is that you want to do and certainly look forward to following you. And we absolutely hope that you might be joining us next year as part of next year's Senate page cohort. And delighted, Laurie, also to see you again.

[00:43:23] And thank you so much for all that you do in so many ways showing service throughout our community. Senators, I ask that we give the very warm welcome of the Senate to the family members from our senator from Colonial Heights, Lori and Emily Sturtevant.

[00:43:46] The chair recognizes the senator from Arlington. Thank you, Madam President. Madam President, I rise for purposes of an introduction.

[00:44:06] The senator has the floor. Thank you, Madam President. Madam President, joining us in the gallery today is Kathy Glazier. Kathy has dedicated her career to ensuring that Virginia's youngest children have the strong start that they deserve. Ms. Glazier played a key role in shaping the Commonwealth's early childhood strategy, serving under Governor Tim Kaine and helping launch the Smart Beginnings Network and the Virginia Early Childhood Foundation.

[00:44:34] Ms. Glazier later contributed to national early childhood policy through her work with the BUILD initiative before returning to lead the Virginia Early Childhood Foundation as president in 2012. Over the past 14 years, Kathy has built relationships with General Assembly members and other stakeholders. She's earned the trust of our families and she has done an amazing job in contributing to making early childhood education affordable and accessible. I do hope it is the will of the senate to welcome this glazier and show our appreciation thank you madam

[00:45:11] president thank you senator for that introduction and welcome to kathy glazier thank you for all of your commitment and service uh decades of hard work to ensure that our youngest virginians get the support the resources and access to critical educational opportunities that they need so that They are off to a wonderful start as they start their academic and social progress.

[00:45:38] We are delighted to have you today in the Senate gallery, and we are delighted to offer you the welcome. Senators, I ask that we give the very warm welcome of the Senate to Kathy Glazier, president of Virginia Early Childhood Foundation.

[00:46:00] The chair recognizes the junior senator from Loudoun. Good morning, Madam President. Good morning. I rise for the purpose of an introduction. Senator has the floor. - Thank you, Madam President. I rise today to recognize some of my team members. The first one is Skylar McCauley.

[00:46:17] I rise today to recognize and thank some of, they're all indispensable members. My session eight, Skylar McCauley, she's a graduate of Virginia Commonwealth University, has a double major in political science and psychology, and the GW University, where she earned her master's in political management.

[00:46:34] Skylar has applied her deep academic background to the practical, fast-paced world of the Senate. Throughout this session, Madam President, Skyler has provided critical research and bill tracking that informs my work on this floor. Whether it was managing our communications or responding to the needs of our constituents, she handled every task with excellence and diligence.

[00:46:53] Madam President, I want to thank Skyler for her dedication and her passion for public service. She has a wonderful and a bright future ahead of her, and I hope you and my colleagues will join me in extending Skyler McCauley the warm welcome and gratitude of the Senate. Also in the gallery, Madam President, is Brandon Jackson, my chief of staff, who requires no introduction.

[00:47:13] He's a rock star, that everybody knows him. And I would just say, Senator Van Valkenburg, look out for Skyler. She has a master's in political management. Thank you, Madam President. I also have Alejandro O'Brien, who couldn't come because of personal reasons. He was a session aid intern from VCU.

[00:47:30] And then Sujit Coppola, who couldn't join us today. He's my regional director back in the district. Thank you. - Thank you, Senator, for the introduction, and welcome to Skylar McCauley. Thank you for all that you have done. It sounds like you did a lot of heavy lifting in the Senator's office.

[00:47:45] Thank you for making sure that the office ran smoothly, and most especially that the Senator's constituents heard promptly about the issues and concerns that they were focused on. And welcome also to Chief of Staff Brandon Jackson. Thank you for all the work you continue to do for the Senator and his office, and especially the mentorship that I'm sure you provide to the many interns and other young folks who are coming through the office.

[00:48:13] Senators, I ask that we give a very warm welcome of the Senate to the folks who have helped our senator from Loudoun, Skyler McCauley, and Brendan Jackson.

[00:48:30] The chair recognizes the senator from Eastern Fairfax. - Thank you, Madam President, rise for an announcement. - Senator has the floor. - Thank you, Madam President. A couple of procedural things. Just want to make sure everybody was aware of Before we start the calendar day, number one, you obviously are aware, I think we have a supplemental calendar in front of us with some of the late breaking action out of the House yesterday.

[00:48:55] We'll take that up at the end of the calendar. In addition to that, we do have a judge election today. However, the bill creating some new judgeships has not passed yet. we need to have that in conference and then that bill adopted before we can have the election for the four new positions that are created by that statute and so you might see us take some stuff a little bit out of order but the intent is to do the judicial election at the end of the day after we pass that bill because we don't want to create the precedent that we're electing people to judgeships that don't exist until we've actually voted them through both chambers

[00:49:32] the new positions. So just be aware that's all happening today. Is there any other business for the morning hour? The clerk will call the calendar. Senate calendar for Wednesday, March 11,

[00:49:55] 2026. Turning to page 34. Uncontested calendar has bills on third reading. The chair recognizes

[00:50:23] the senator from Eastern Fairfax. Madam President, I move that all the house bills on the third reading on the uncontested calendar on pages 34 through 49, House Bill 1006 through 1531 be advanced their final passage in the block after the adoption of the amendments there too.

[00:50:49] Then any senators are going to move the bill from the block. Please do so after the clerk has read the number of the bill. The question is, shall the house bills on the uncontested calendar, third reading, pages 34 through 49, House Bill 1006 through House Bill 1531 be placed upon their final passage in a block after the adoption of any amendments thereto with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill all in favor of that motion will say aye those opposed no the eyes have it the motion

[00:51:26] is agreed to the bills are now before us in the block the clerk will read the number of the bills has bill 1006 reported from the committee on finance and Appropriations. House Bill 69, reported from the Committee on Commerce and Labor with a substitute. The Senator from Charlottesville. Madam President, I move the substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[00:51:53] All those in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 128, reported from the Committee for Courts of Justice with a

[00:52:04] Substitute. Senator from Eastern Fairfax. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? All those in favor will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Has Bill 176 reported from the Committee on Finance and Appropriations? Has Bill 316 reported from the Committee on Commerce and Labor with amendments? Senator from Charlottesville. Madam President, I move that the Committee amendments be agreed to.

[00:52:36] to. The question is, shall the amendments from the Committee on Commerce and Labor be agreed to? All those in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Has Bill 426 reported from the Committee on Commerce and Labor. Has Bill 138 reported from the Committee for Courts of Justice with amendments and from the Committee on Finance and Appropriations. Senator from Eastern Fairfax. Senator from Arlington. Madam President, I move that the amendments be agreed to. The The question is, shall the amendments from the Committee for Courts of Justice be agreed

[00:53:15] to? All those in favor of that motion will say aye. Those opposed, no. The ayes have it. The amendments are agreed to. House Bill 439 reported from the Committee on Commerce and Labor with amendments.

[00:53:36] Senator from Charlottesville. Madam President, I move that the Committee of Amendments be agreed to. The question is, shall the amendments from the Committee on Commerce and Labor be agreed to? All those in favor of that motion will say aye. Those opposed, no. ayes have it. The amendments are agreed to. Has bill 577 reported from the Committee for Courts of Justice with the substitute and from the Committee on Finance and Appropriations with the substitute. Senator from Eastern Fairfax. With the recommendation we reject that I move the Courts of Justice substitute. With the recommendation that it

be rejected the question is shall the substitute from the Committee for Courts of Justice be agreed to? All those in

[00:54:15] favor of that motion will say aye. Those opposed, no. The nos have it. The amendment is the substitute is not agreed to. Senator from Eastern Fairfax. Move the Senate Finance Committee substitute. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All those in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 606 reported from the Committee on Finance and Appropriations with the substitute. Senator from Arlington. Madam President, I move that the substitute from

[00:54:51] Senate Finance and Appropriations be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All those in favor of the motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 701 reported from the Committee on Commerce and Labor with an amendment.

[00:55:10] Senator from Charlottesville. Madam Chair, I move that the committee amendment be agreed to. The question is, shall the amendment from the Committee on Commerce and Labor be agreed to? All those in favor of the motion will say aye. Those opposed, no. The ayes have it. This amendment is agreed to. House Bill 733, reported from the Committee for Courts of Justice.

[00:55:29] House Bill 795, reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations. Senator from Charlottesville. Madam President, I move that the Committee's substitute be agreed to.

[00:55:45] The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All those in favor of the motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1127, reported from the Committee on Commerce and Labor.

[00:56:04] Madam President. Senator from Roanoke. Can House Bill 1127 please come out of the block? Without objection, House Bill 1127 is out of the block. House Bill 1166, reported from the Committee on Commerce and Labor.

[00:56:27] House Bill 1188, reported from the Committee on Rules with a Substitute and from the Committee on Finance and Appropriations, and there is a floor substitute. Senior Senator from Henrico.

[00:56:48] Thank you, Madam President. Madam President. Senator, I think we need to reject. Reject the rules. With the recommendation that it be rejected, I move the rules substitute.

[00:57:09] With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Rules be agreed to? All those in favor of the motion will say aye. Those opposed, no. The noes have it. The substitute from Committee on Rules is not agreed to.

[00:57:27] Senator from Henrico. Thank you, Madam President. Madam President I move that we waive the reading of the floor substitute the question is shall the reading of the floor Substitute be waived all in favor of that motion. We'll say aye Those opposed no the eyes have it the reading of the floor substitute is waived senator from Henrico. Thank you madam president the full substitute responds to our rules committee desire to decrease the number of

[00:58:00] members on the Boys and Men Commission and it also makes the appropriate ratio and so I'll make a motion to pass the floor substitute the question is shall the floor substitute be agreed to all in favor

of that motion will say aye those opposed no the ayes have it the floor substitute is agreed to senator from that's okay. House Bill 1214, reported from the Committee on Commerce and Labor with an amendment.

[00:58:39] Senator from Charlottesville. Madam President, I move the committee amendment be agreed to. The question is, shall the amendment from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The amendment is agreed to. House Bill 1256, reported from the Committee on Commerce and Labor. House Bill 1357, Reported from the Committee on Finance and Appropriations with a substitute.

[00:59:10] Senator from Western Henrico. Madam President, I move the Finance and Appropriations substitute. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to?

[00:59:28] All those in favor of the motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1400. Reported from the Committee on Commerce and Labor with an amendment. Senator from Charlottesville.

[00:59:45] Madam President, I move the committee amendment. The question is, shall the amendment from the Committee on Commerce and Labor be agreed to? All those in favor of that motion will say aye. Those opposed, no. The ayes have it. The amendment is agreed to. House Bill 1401, reported from the Committee for Courts of Justice with a substitute.

[01:00:17] Senator from Eastern Fairfax. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? all those in favor of the motion will say aye those opposed no the eyes have it the substitute is agreed to host bill 1403 reported from the committee on finance and appropriations as bill 1414 reported reported for the committee for courts of justice with a substitute and from

[01:00:49] the committee on finance and appropriations senator from eastern fairfax um thank you Madam President. I move the committee substitute. The question is shall the substitute from the Committee for Courts of Justice be agreed to? All those in favor of the motion will say aye.

[01:01:09] Those opposed no. The ayes have it. The substitute is agreed to. House bill 1450 reported from the Committee on Commerce and Labor. House bill 1464 reported from the Committee on Finance and Appropriations with the substitute. Senator from Portsmouth. Thank you Madam President. Madam President, I move that the committee substitute from Senate Finance and Appropriations be agreed to.

[01:01:40] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All those in favor of the motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Host Bill 1491, reported from the Committee on Commerce and Labor.

[01:01:58] Madam President. Senator from Prince Edward. Could this bill come out of the block and buy for the day. Are you speaking about 1491, Senator? Yes, Madam President. Without objection, House Bill 1491 is out of the block. And by for the day. Did you say by for the day as well? Thank you, Senator.

[01:02:19] Without objection, House Bill 1491 is out of the block and by for the day. House Bill 1500, report it from the Committee for Courts of Justice with a substitute. Senator from Eastern Fairfax.

[01:02:40] Thank you, Madam President. Move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to. All those in favor of the motion will say

aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1529 reported from the Committee on Commerce and Labor.

[01:03:01] House Bill 1530 reported from the Committee on Finance and Appropriations. House Bill 1531 reported from the Committee on Finance and Appropriations. The question is, shall the House bills in the block pass?

[01:03:18] That is, all bills except for House Bill 1127 on page 42 and House Bill 1491 on page 47. All in favor of that motion will record their votes aye.

[01:03:34] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0. The bills in the block pass.

[01:03:53] Madam President. Senator from Prince William. Thank you, Madam President. I haven't voted on the prevailing side by which we just passed the block motion to reconsider that vote so every member may vote. The question is?

[01:04:11] Madam President. Senator from Loudoun. Madam President, could House Bill 1414 come out of that block and buy for the day? What page is that, Senator? It's on page 46. Senator, I will make that motion in just a minute. We'll do the reconsideration first.

[01:04:35] The question is, shall the vote by which the block was passed be reconsidered? All in favor of the motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[01:04:53] Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no, zero. Ayes 40, no, zero.

[01:05:09] The motion is agreed to. Senator from Loudoun, can you renew your motion, please? Yes, Madam President. Thank you, Madam President. Madam President, could House Bill 1414 come out of the block and buy for the day? House Bill 1414 is out of the block without objection and buy for the day.

[01:05:29] The question is, shall the House bills in the block pass, that is, all bills except for House Bill 1127 on page 42, House Bill 1491 on page 47, House Bill 1414 on page 46?

[01:05:53] all those in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[01:06:07] the roll ayes 40 no zero ayes 40 no zero the bills in the block pass turning to page 42 house bill

[01:07:06] 1127. senator from charlottesville madam president i move the bill pass i'd like to speak to that please. Senator has the floor. Madam President, this is a simple bill that affects one road in the Commonwealth, the Greenway, and it increases from one year to two years, the maximum length of time. The SEC is authorized to approve toll rate increases under the Virginia Highways Corporation Act of 1988 that created the Greenway. The bill requires the commission to issue a final order regarding any application for approval of one year or two years of such toll rate increase to be

[01:07:43] entered within nine months or 12 months, respectively, after the date of the filing of such application. That's it. I reiterate my motion that the bill pass. The question is, shall House Bill 1127 pass? All in favor of that motion will record their votes aye.

[01:08:01] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 1.

[01:08:17] Ayes 39, Nose 1. House Bill 1127 passes. Regular calendar House Bill's on third reading.

[01:08:43] House Bill 1013, a bill relating to Marine Resources Commission, Chesapeake Bay, Diamondback, Terrapin protection areas, use of bycatch reduction devices on crab traps penalty.

[01:09:03] Reported from the Committee on Agriculture, Conservation, and Natural Resources, and there is a floor substitute. Senior Senator from Fairfax.

[01:09:19] Thank you, Madam President. Madam President, I move that the reading of the floor substitute be waived. The question is, shall the reading of the floor substitute be waived? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The reading is waived.

[01:09:35] Senator from Fairfax. Thank you, Madam President. move now that the floor substitute be agreed to in speaking to that motion. Senator has the floor. Thank you, Madam President. As you'll remember yesterday, this bill deals with the placing of turtle restrictor devices on crab traps for recreational crabbers. And what these restrictors do is prevent the turtles from getting inside the crab trap where they will drown, but allows the crabs to get in and it just deals with recreational uh recreational crabbers now there was language in the bill in in in lines 14 through 19 of the uh of the second amendment

[01:10:14] clause that threw a lot of language in there about creating a protected area for turtles and it dealt with a number of fishing devices and what have you all that language is extemporaneous to the the intent of the bill it wouldn't have prevented anybody from fishing or doing any kind of of fishery activities in that area but it was confusing and I think that the senator from Prince George County was correct and so after speaking with the Bay Foundation and speaking with the the patron of the bill in the house delegate Tran we took that language out and all the bill does at this point the one thing that it does is say if you're a recreational crabber

[01:10:53] you have to put one of these restrictors on we're losing turtles we're not affecting impacting commercial crabbers in any way and I know the the senator still may have some concerns and I'll address those if the if you if he would like but at this point in time I think that the the substitutes in good shape and solves most of the problems that the senator from Prince George had senator from King George. Madam President, I'll wait till he moves for passage of the bill. The question is,

[01:11:31] shall the floor substitute be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The floor substitute is agreed to. Senator from Fairfax, do you wish to move passage? Yes, I now move the passage of the bill and having explained the substitute and the bill I think we're in good shape and move that the bill passed senator from King George thank you madam president I do very much appreciate the senator

[01:12:06] trying to work on this and I'm not quite sure how to say this so I guess I'll just say it bill's actually worse than it was yesterday so and you know go back and look, and what the bill said was it was going to establish protection areas, and those were places up in the creek, and then you had to use these little contraptions. Well, read the substitute, now you got to do it everywhere. You got to put them on everywhere, in every river, even the cow

[01:12:41] pasture. Anywhere there's a crab pot, you now have to put it on them in the middle of the Chesapeake Bay where the Terrapin doesn't even swim. So while I appreciate the effort, it's actually worse. But it's still, the area now is the entire bay and all the rivers because it does not restrict it to certain areas. But it doesn't solve the fundamental problem anyway. We charge VMRC to do this. VMRC is

[01:13:16] responsible for establishing our fishing regulations. Look at the first paragraph of the Bill, A, the commission shall promulgate regulations governing the use, placement, and maintenance of crab traps and crab pounds.

[01:13:33] And now we're going to insert this in telling them how to do it. This is a Christmas tree. But what really concerns me is this, and this is important for everybody to understand in fisheries management. Whenever the General Assembly establishes a precedent, which this would be, that these plastic contraptions should be on crab pots, groups can sue.

[01:14:02] And I think that is the idea here. A group could sue and say, the General Assembly said, you've got to have these on crab pots to protect the turtles. And I think a judge would force all of them to go on commercial pots.

[01:14:18] And that's my concern. really hope that we won't support this bill I said all along let's send a message to VMRC and say deal with this issue and let's not try to manage this forum they have the experts they have people they have environmental folks they have working watermen they have everybody on these panels and they have lots of panels and commissions they've not found a way to do this yet where it doesn't impact our commercial seafood industry.

[01:14:52] And I'll say it again today, we've got to make a tough decision. I mean, either you want to eat crabs or you want to save all the turtles. And I would rather eat crabs. I'm sorry. Senator from Charlottesville. Will the gentleman from King George yield for a question?

[01:15:09] Will the gentleman yield? Did the gentleman say that this bill applies to even places like the Kalpast River, a bucolic stream that flows through the district of the gentleman from... The Senator from Rockingham and the Senator from Botetite. Senator from King George.

[01:15:26] I would answer the Senator very clearly. It applies in the Calpasture River. It applies the headwaters. Anywhere you would put a crab pot now. If you put a crab pot in a stream in the mountains, in a stream in the mountains, you got to have these contraptions on.

[01:15:49] Senator from Charlottesville. Put the gentleman to yield for an additional question. Senator, will you yield? I'm happy to yield, Madam President. Senator from Charlottesville. Explain to me, or explain to the body, where on the Kalpash River the gentleman has found recreational crab pots.

[01:16:04] Senator from King George. And I understand the gentleman, maybe the map or compass defined the Kalpash River. Senator from Charlottesville. President, that was not the question. What the senator asked was, if I'm using crab pots, would I have to put them in the cow pasture river?

[01:16:24] And the answer is yes. I don't know where he fishes for crabs. That is his business. If he wants to fish for crabs in the cow pasture, he's got to have these contraptions on the pots. The Senate will be in order.

[01:16:41] I remind the members of this chamber, please wait to be recognized. If you are asking a question, please address first the request for the question so that I may then properly ask the other senator

if they will yield. Senator from Charlottesville, do you have any more?

[01:16:58] Madam President, will the gentleman yield for an additional question? Senator from King George, will you yield? I yield. Senator from Charlottesville. Madam President, I didn't think the gentleman got my additional question where on the Kalpast River or on any river.

[01:17:16] or any body of water west of the tidal wetlands, has a gentleman found a crab pot? Senator from King George. Madam President, I don't crab in those areas, so I can't speak to that.

[01:17:32] I crab in the river, in the Potomac River, in the Rappahannock River. I don't go up into the cow pasture, but what I can tell the senator is this. If you intend to crab in the cow pasture, you will now have to have this plastic contraption on the pot.

[01:17:52] Madam President, would the gentleman yield for an additional question? Senator, will you yield? I will yield. Senator from Charlottesville. Madam President, would the gentleman explain to this body how many people, who he knows that crabs outside of the tidal waters of the Commonwealth?

[01:18:09] Senator from King George. Madam President, again, I don't know where people crab, and that's not the point of it. The point of it is this, if you crab, you now have to put these things on the pots to exclude the turtle, which unfortunately also excludes the crab from going in. Wherever it is, if it's above tidal waters, if it's below tidal waters, if it's in tidal waters, you got to put it on the pot.

[01:18:45] as you can see this debate has made me crabby too so let's let's all follow decorum as we debate these serious very serious matters the senator from shenandoah senator from fairfax thank you madam madam president the the bill if i speak to the bill senator has the floor the bill as it was originally written would require recreational crabbers to use it everywhere The area that was created in the bill, and I don't know why they created this protection area,

[01:19:24] didn't mean that that was the only place that you could crab. So all this does was require recreational crabbers to put these devices on so we can cut down on the losses of these very valuable and important creatures that exist in our Chesapeake Bay.

[01:19:41] And, you know, as to what the future holds, if somebody comes along someday and wants to do commercial, half the bills we pass here have some future indication that somebody could take it even further. But we're dealing with the problem we have today, which is the death and the drowning of these turtles. And recreational crab traps, no matter where they are, have to have restrictors on them. And that's fine. That's what the intent of the bill is. We have no intention of harming the commercial crabbers here in the Commonwealth of Virginia. We've had presentations from scientists that said they've done studies and they've looked at this and

[01:20:16] very rarely is a crab ever excluded by one of the restrictors and and again it's just recreational stuff so if every year or so somebody's deprived of a couple of crabs because they were too big I suppose we can live with that loss to protect these these creatures and I urge you to support and and pass this bill thank you madam president does a junior senator from Virginia Beach wish to speak Thank you, Madam President. Will the Senator from King George, do you hear for a question?

[01:20:45] Senator from King George, will you yield? Senator from Virginia Beach. Madam President, I'd just like to ask the Senator from King George, just for all the acquiring minds, how does one fish for crab? Do you fish for crab, or do you crab for crab?

[01:21:01] Senator from King George. Madam President, there are a number of ways to do it. You can fish with a net. You can fish with a string and a piece of chicken. There are a number of ways to do it. What this actually goes after are crab pots.

[01:21:20] And so there is a pot shaped like a square, and you put weights on the bottom of that pot, and it's made out of mesh wire. And at the bottom of those pots, you put a funnel around each side of it, and then you have a sort of a bait cylinder in the middle of it. Those crabs come in that funnel to get to the bait inside. What these restrictors do is you have to put the restrictor in front of the funnel so the crab can't get in it, so the turtle can't get in it. The problem is the turtles are much the same size as the crabs, so now the crabs not going to be able to get in it.

[01:21:59] Madam President. Senator from Virginia Beach. Just clarification from the Senator from King George. You can fish... Senator, are you asking this? I yield for a question, additional question. Will you yield for a second question? I yield, Madam President. Senator from Virginia Beach. Just for technicalities, because I grew up in Virginia Beach on the water, brackish water, salt water, fresh water.

[01:22:18] Technically, you can fish for crab. Senator from King George. There are other methods other than a crab pot. That is correct. But I would also inform the Senator from Virginia Beach that his area will be affected by this probably more than anybody else's because he's got the Lynn Haven and all those backwaters in there. And I would also point out to the Senator that if you violate this provision, it is a misdemeanor, a criminal offense in Virginia. Thank you, Madam President,

[01:22:54] for the question. Senator from Isle of Wight. Thank you, Madam President. Speaking of the bill. Senator has the floor. Thank you. I'm sorry. I will try not to be too crabby about this, but But seriously, we're talking about a bill that is going to criminalize people that are just sitting along the JRB, putting down a crab pot, trying to pick up dinner for the night, not someone that's doing this commercially.

[01:23:20] So anyone that represents any of the inlets of, I have parts of the James River, the Pagan River, all areas in which we have blue crab, all the way around the bodies of water that are inland areas of Norfolk and Virginia Beach. We're seeking to add a criminal penalty on people that are just trying to, you know, add a couple extra craps and a crab pot for dinner because it's recreational here.

[01:23:42] And I hope that we would defeat this bill. Thank you, Madam President. Seeing no other senators who wish to speak, the question is, shall House Bill 1013 pass? All in favor of that motion will record their votes aye.

[01:23:59] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:24:13] clerk will close the roll. Ayes 18, noes 22. Ayes 18, noes 22. House Bill 1013 does not pass. House Bill 1015, a bill relating to possession or transportation of firearms, firearms, ammunition, stun weapons or explosives or carrying of concealed weapons by persons convicted of misdemeanor hate crime prohibited

[01:24:53] penalty reported from the Committee for Courts of Justice with the substitute and from the Committee on Finance and Appropriations. The senator from Eastern Fairfax. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Fairfax. Thank you, Madam President move the bill pass

and speak the motion. Senator has the floor. Thank man President I'm gonna try this one from memory down my notes. This bill

[01:25:33] basically prohibits someone from carrying a concealed weapon if they've been convicted of a hate crime. I believe it also might add them to the prohibited firearm purchase list once they've been convicted of that hate crime. However, just so in case you're worried that it's a lifetime ban, because it's not covered by the Lautenberg amendment, the federal law that has to do with domestic violence, I believe this is a firearm right that could be restored by a circuit court judge over time, but after time. So I believe

[01:26:13] that's what the bill does. I hope it passed the bill. The question is, shall House Bill 1015 pass? all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 19 ayes 21 nose 19 house bill 1015 passes has bill 281 a bill relating to

[01:26:50] Virginia Residential Landlord and Tenant Act non-compliance as defense to action for possession or now non-payment of rent reported from the Committee on General Laws and Technology the senator from Western Henrico thank you madam president ma'am president move passage of the bill and speaking to that senator we must first adopt the amendment oh we did that yesterday sorry move the amendment the question is shall the amendment from the Committee on General laws and technology be agreed to. All in favor of that motion will say aye. Aye.

[01:27:30] Those opposed, no. The ayes have it. The amendment is agreed to. Senator from Henrico. Thank you, Madam President. Move passage of the bill and speaking to that motion. Senator has the floor. Thank you, Madam President. Madam President, members of the body, that amendment was a delayed enactment of a year, and what House Bill 281 does is remove the provision requiring that a tenant in possession of a dwelling unit prior to asserting a defense against an action for rent or possession pay into court the amount of rent found to be due or unpaid this is basically about the tenant having a right to an assertion when there has been a health or safety hazard and not having to to pay into the escrow at the front end so move passage

[01:28:09] of the bill the question is shall House Bill 281 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote. Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, Nose 19. Ayes 21, Nose 19. House Bill 281 passes.

[01:28:44] House Bill 1078, a bill to amend and reenact a bill relating to Virginia Residential Landlord and Tenant Act adverse action by landlord tenant remedies Report it from the Committee on General Laws and Technology with amendment.

[01:29:08] Senior Senator from Prince William. Thank you, Madam President. I move to recommit House Bill 1078 back to General Laws and Technology. And speaking of the motion. Senator has the floor.

[01:29:24] Thank you, Madam President. So there's a number of different bills in the Land or Tenet Act. And I think previous law on expungement covers a portion of this. And I think that with the additional days from 5 to 14, it's probably wise to take a look at the impact and effect of what we already have in terms of the ability to petition and remove prior detainer and other landlord issues that are perhaps on an individual's record.

[01:29:52] And so in combination with the other bills that we're passing, I think this needs a little bit more work. And we've reached out to the patron as such. So I ask that it be recommitted. The question is, shall House Bill 1078 be recommitted to the Committee on General Laws and Technology?

[01:30:10] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bill is recommitted to the Committee for General Laws and Technology. House Bill 1093, a bill relating to Virginia Residential Landlord and Tenant Act, Landlord Remedies, Tenant's Right of Redemption, Attorney Fees.

[01:30:40] The committee amendment has been adopted by the Senate. Senior Senator from Prince William. Thank you, Madam President. Likewise and in similar posture, I'd move that this bill be recommitted to the Committee of General Laws and Technology and speaking to that motion.

[01:30:56] has the floor thank you madam president I think we've also passed the change of 5 to 14 days already in landlord-tenant act and so this provision because you would not be able to collect lesser fees and in the attorney process I think it would be wise to assess based on the fact that we're giving tenants additional days in the process it could be more complicated more expensive at that point given that there's additional days in the process to start the process to recover rent and eviction if necessary that it be wise to take a look at this beckon committee so also have reached out to the patron in this regard based on

[01:31:31] the 15 or so other bills in this act I think it is a little bit more prudent to take time in the committee on this so I'd ask that it be also recommitted the question is shall House bill 1093 be recommitted to the committee on general laws and technology all in favor of that motion will say aye those opposed no the eyes have it the bill is recommitted to the committee for general laws and

[01:32:01] technology has bill 489 a bill relating to rest restorative justice practices reported from the committee for courts of justice with a substitute and there is a floor substitute the seat the senior senator from loudon Madam President, I move that we withdraw the floor substitute, I think this bill is going to end up in conference committee, but I just move we withdraw it and send it to the conference committee and try and work out those issues.

[01:32:40] Without objection, the substitute for House Bill 489 is withdrawn. Senator from Fairfax. Thank you, Madam President.

[01:33:00] I move the substitute to the Committee of Courts of Justice. The question is, shall the substitute from the Committee for Courts of Justice be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from eastern fairfax uh thank you madam president i move bill pass and speak of the motion senator has the floor thank you madam president let's jump in senate house bill 49 is an attempt to codify uh what i guess called restorative justice justice practices this is basically like when you take the defendant and the victim and you put them in a room and

[01:33:40] have them talk to each other and try and work it out before they end up going through with the prosecution um you know this is a practice that uh kind of like mediation but not exactly uh there's a lot of different ways of doing this there's a lot of different cultural practices they're doing in different communities etc and at the bill's draft it was very broad and we scoped it way back we required these restorative justice practitioners to be um certified by an independent organization we required that it be a written contract between

[01:34:16] the defendant the victim and the commonwealth so everybody's on the same page about exactly what this process was and what the rules were uh etc there was also if they engage in this practice i guess the the people that organizations that do this want some assurance about whether the things talked about can be used there's some tricky issues surrounding that about what evidence can be admitted whether admissions are made during that process how they can be used or not whether or not it's still subject to privilege etc anyway we did a lot of work on this to clean it up still needs some more work though we did put a reenactment clause on it

[01:34:56] the patron was not happy with the amendments we made it's not clear to me even if this goes to conference whether it'll come out or not so the bill right now before you doesn't do anything because the reenactment clause but it's it was sort of our best effort to try and get this thing into some kind of shape where we felt comfortable passing it out but but that's what it does it's a way to basically avoid having a trial if there's an opportunity for the victim and the defendant and sit down and talk and figure out if there's a way to atone for what's happened other than go through a criminal trial and a potential conviction or acquittal that's basically

[01:35:33] what the bill does the chair recognizes the senator from Lynchburg thank you madam president just speak briefly to the bill senator has the floor thank you madam president after uh yesterday's restorative justice in uh public education k through 12 now we have restorative justice for our adults i guess we now have the school to restorative justice pipeline i ask you to vote against this bill the question is shall house bill 489 the question is shall house bill

[01:36:12] 489 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll i was 21 nose 19. ayes 21 nose 19. house bill 489 passes

[01:36:37] house bill 1448 a bill to create the petersburg parking authority act the chair recognizes the senator from eastern henrico thank you so much madam president i move passage of the bill and speaking to that motion senator has the floor thank you so much madam president house bill 1448 is a bill that is new to this chamber we did not have another one come through but the petersburg parking authority is not an unfamiliar concept

[01:37:14] madam president the general assembly has passed parking authorities for richmond norfolk leesburg fairfax harrisonburg we are seeing an exciting time occur in the city of petersburg with a number of economic development opportunities and in order to address the additional need for parking options the petersburg parking authority is an opportunity to do so uh madam president uh this authority puts no strain on state financial resources uh and this is just really to ease congestion because it is specific to the city of petersburg it does require 27 votes

[01:37:51] but i would emphasize that this parking authority is structured in no way that is unique to petersburg it is the exact same language we have always passed for other parking authorities and i'm just hopeful that we can move this bill forward with at least 27 votes senator from rockingham madam president rise to speak to the bill senator has the floor madam president when this bill came through i was outraged outraged to find out that this parking authority wanted eminent domain authority and powers so i i couldn't figure out

[01:38:27] why on earth as opposed to the local government that a parking authority would need to be able to exercise the power of eminent domain only to find out that i've probably voted for the power of

eminent domain for the now richmond norfolk leesburg harrisonburg and other parking authorities And as a consequence, consistency being the hobgoblin of small minds.

[01:38:53] I'm going to vote for this this year, but I'm coming back next year with a bill to remove the power of eminent domain from all of these parking authorities, and I hope that I'll get support standing up for property rights across the Commonwealth of Virginia.

[01:39:08] So I hope my friends will join me in supporting this bill. Senator, the chair reminds the senator that it is a foolish consistency that's the hobgoblin of small minds. Senator from Eastern Henrico. Thank you, Madam President. I hope with that rousing bipartisan support, we can move this bill forward. The question is, shall House Bill 1448 pass? All in favor of that motion will record their votes high. Those opposed, no. Are the

[01:39:44] senators ready to vote. Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 1. Ayes 39, noes 1. House bill 1448 passes.

[01:40:03] Senator from Eastern Fairfax. Madam President, having voted on the planning side by which we adopted House bill 49 on page 51, I'd move that we reconsider that vote. The bill, apparently DLS did not put a reenactment clause on it, which I was, which we actually voted to do.

[01:40:18] We need to clean that up. Senator, you said 489 on page 51. House Bill 49, page 51, the bill we just did a moment ago.

[01:40:35] 489. The question is, shall the vote by which House Bill 489 passed be reconsidered? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote?

[01:40:51] Have all the Senators voted. Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 40, Noes 0. Ayes 40, Noes 0. The motion is agreed to. Senator from Fairfax. I would ask that the bill go by temporarily so I can get a floor amendment prepared.

[01:41:07] Without objection, House Bill 489 goes by temporarily. House Bill 26, a bill relating to modification of sentence for marijuana-related offenses.

[01:41:29] Reported from the Committee for Courts of Justice with the substitute and from the Committee on Finance and Appropriations. The senator from Eastern Fairfax. Thank you, Madam President. I would move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to?

[01:41:47] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Fairfax. Bill passed and speaking to the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, the Senate, this is a bill that you all have seen before. I think for at least the last two years, maybe even the last three, this has to do with modifying sentences for people who are convicted of marijuana-related offenses.

[01:42:11] I think I actually carried a version of this at one point. Madam President carried a version. We merged our versions together that year, and then this year she has Senate Bill 62, which passed out of here 2117. The amendment you just made conforms the Delegates Bill with Madam President's bill, and I'm sorry, and that it basically allows people to go back and have a resentencing in light of the fact that we have now not just legalized possession of marijuana,

[01:42:47] but hopefully, knock on wood, create a retail market for cannabis later this session. That's what the bill does. Again, it passed that here 2117 before. The question is, shall House Bill 26 All in favor of the motion will record their votes aye.

[01:43:06] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19.

[01:43:22] House Bill 26 passes. House Bill 153, a bill relating to siting of data centers and site assessments, high energy use facility, reported from the Committee on Local Government with a substitute and from the Committee on Finance and Appropriations. The Senator from Western Prince William. Thank you, Madam President. Madam President, remove passage of the bill and I'm ready to speak to that. Senator, we have a substitute. Oh, I'm so sorry. Madam President, remove the Committee's substitute. The question is,

[01:44:02] shall the substitute from the Committee on Local Government be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Prince William. Thank you, Madam President. Madam President, this substitute now puts the bill in the same posture that SB 94

[01:44:19] was when it left the Senate, and so I move passage of the bill. The question is, shall House Bill 153 pass? All in favor of that motion will record their votes aye.

[01:44:50] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 26, noes 14. Ayes 26, noes 14. House Bill 153 passes. The chair recognizes the clerk.

[01:45:25] We've received a message from the House of Delegates. The House has acceded to the request of the Senate for Committee of Conference on the on House Bill 443. Comfries on the part of the Senate is named by the Chair of Courts of Justice, Senator Surabelle, of Senators Perry, Deeds, and Stewart. House Bill 172, a bill relating to criminal cases requests for a jury to ascertain punishment. Reported

[01:46:05] from the Committee for Courts of Justice with an amendment. Senator from Eastern Fairfax. Move the committee amendment. The question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion we'll say aye aye those opposed no the ayes have it the amendments are agreed to senator from Fairfax thank you madam president ladies gentlemen Senate House bill 172 I'm not sure whether called a cleanup bill or not but it has to do with sort of an unintended or a confusion that's arisen after we abolished jury sentencing in the 2020 session so it used to be that

[01:46:42] you could the juries in Virginia sentenced on felony cases but actually recommended the sentence and the judge imposed the sentence in 2020 we made it so that a defendant could be could have a jury recommended sentence at their option most people don't choose for that but in a few cases they do some confusion has arisen in the circuit courts as to when an accused person has to advise the court that they're withdrawing that request for jury sentencing this makes it clear you can do it right up until the point you're sentenced uh right up until the

[01:47:17] the moment um i guess after you're convicted um the other thing the bill does is it also provides counsel for either party have the right to examine jurors regarding potential punishment ranges of punishment uh regardless of whether the jury is going to do sentencing or not and um the house also had language that they sent over allowing you to cross-examine jurors about sentence in juvenile cases

which made no sense because in juvenile cases juries don't do that so we would we removed that language from the bill so now the bill is only for adults that's what the bill does

[01:47:55] um pass party line vote out of courts hope we can pass it here the question is shall house bill 172 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 nose 19. ayes 21 nose 19 house bill 172 passes

[01:48:29] house bill 185 a bill relating to orders closing a proceeding or sealing a record petitions for review reported from the committee for courts of justice with a substitute excuse me with an with an amendments and reported from the committee on finance senator from eastern fairfax thank you madam president move the committee amendments the question is shall the amendments from the committee for courts of justice be agreed to all in favor of that motion will say aye aye those

[01:49:08] opposed no the eyes have it the amendments are agreed to senator from fairfax thank you madam president move the bill passed and speaking to the motion senator has the floor thank you madam president uh ladies and gentlemen senate house bill 185 is also a new bill we have not seen It came out of courts on a 14-to-1 vote.

[01:49:25] The bill is a Boyd-Gray's bill. To some people, that's a validator. To other people, it's a bad word. But in general, it means a lot of lawyers looked at this and came up with what they thought was a consensus. The bill basically allows a party to appeal or allows someone to appeal a case that's been sealed.

[01:49:49] This could be important, for example, if the press has interest in a case, sometimes things can be sealed over the objection of a party but it allows an interlocutory appeal which means an appeal while the case is pending to an appellate court normally that's not allowed and we removed language that granted that special interlocutory appeal if just a record is sealed we thought that was kind of overkill that's what the bill does again it was a 14 to 1 vote out of courts the question is shall house bill 185 pass all in favor of that motion will record their votes aye those opposed no are the

[01:50:26] Senators ready to vote. Have all the Senators voted. Do any Senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. House Bill 185 passes. House Bill 193. A bill relating to parole exception to limitation on the applicant application of parole statutes reported from the Committee for Courts of Justice with amendments and from the Committee on

[01:51:03] Finance and Appropriations. Senator from Eastern Fairfax. Thank you, Madam President. Move the Committee of Amendments. The question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Senator from Fairfax. Thank you, Madam President. Move the bill to pass. Speaking of the motion. Senator has the floor. Thank you, Madam President. Again, House Bill 193 is also a new bill. We have not heard yet on the floor here. This bill has to do with the fishback situation those of you that don't know what fishback is it was we dealt

[01:51:43] with this about i want to say four or five years ago fishback was a case that came down in 2000 in which the supreme court of virginia held that a jury needs to be instructed to the fact that we have abolished parole in virginia that was because a lot of jurors thought well if we give somebody 20 years you know they're gonna get parole and get out in 10 and in 2000 the supreme court said we should be advising

juries that there is no parole because it might be affecting their sentencing decisions the problem is a whole bunch of people had already been sentenced and so a couple years ago we passed a bill that said that that where the jurors weren't advised they could go back and

[01:52:17] undo that well or go back and get a resentencing well um we left out some people and so what this bill does it says if somebody was sentenced by a jury between june 9th of 2000 which is when the supreme court came down in january 1st of 2005 where the jury said i'm sorry the supreme court held that a jury should be instructed on that and that they can prove by proponents the evidence that the jury in their case was not instructed on the fact parole had been abolished and that they remain incarcerated for the offense for which they were convicted on July 1 of 2026

[01:52:55] and it wasn't a class one felony, which is aggravated murder, minor victim, rape, forceful sodomy, and a whole bunch of sex offenses, then they can go back to the parole board and apply for this fishback relief. That's basically what this bill does. Provides relief to a very small set of people. Came out of the committee nine to four with an abstention. Hope we could pass it.

[01:53:19] The question is, shall House Bill 193 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 26, noes 14. Ayes 26, noes 14. House bill 193 passes. House bill 273, a bill to amend

[01:53:56] the Code of Virginia by adding a section numbered 8.01-225.404 relating to law enforcement officers duty to render aid upon danger to life or limb civil immunity reported from the committee for courts of justice with the substitute senator from eastern fairfax thank you madam president i move the bill pat i'm sorry move the committee substitute the question is shall the substitute from the committee for courts of justice be agreed to all in favor of that motion we'll say aye aye those opposed no the ayes have it the substitute

[01:54:35] is agreed to senator from fairfax um thank you madam president move the bill passed and speaking to the motion senator has the floor thank you madam president continuing on the same theme this is another new bill that we have not heard on this side this year this bill sort of builds on work that we did in the 2020 special session where we passed a law requiring law enforcement officers to intervene when they see something bad happening what this does is says that if a law enforcement officer sees a person

[01:55:11] who is in danger of serious bodily injury or life-threatening condition they have a duty to render aid to help the help the person live there was some some technical amendments our main committee moving it to a different title the code the biggest change we made though is that the bill continues immunity for police officers normally I don't like I don't like immunity it's usually a poison pill for me but this actually removes immunity from officers but

[01:55:47] but maintains it for any personal injury or wrongful death that are not due to the gross negligence or willful misconduct from rendering or lawfully withholding of such aid to the person who's injured. So basically, if you think about somebody who's like bleeding out, they've been shot, they've been bleeding out, the officer has a responsibility to do something about it, not just sit there and watch them bleed out, no matter what the injury is.

[01:56:12] And they can only be held liable if they're either grossly negligent or willful malicious, willful maliciously. but just basic negligence they still have immunity for that that's basically what i think what the bill does the question is shall house bill 273 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any

[01:56:42] senators desire to change their vote the clerk will close the roll as 21 knows 19 ayes 21 knows 19 House Bill 273 passes.

[01:57:04] House Bill 286, a bill relating to Virginia National Guard, power of the governor to summon in certain circumstances mobilization under federal authority annual report reported from the Committee on General Laws and Technology with a substitute and from the Committee on Finance and Appropriations with a substitute.

[01:57:31] Senior Senator from Prince William.

[01:57:44] Thank you, Madam President. With the recommendation that it be rejected, I move the committee substitute from General Laws and Technology. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on General Laws and Technology be agreed to?

[01:58:00] All in favor of that motion will say aye. Those opposed, no. No. The nos have it. The substitute is not agreed to. Senator from Prince William. Thank you, Madam President. I move that the substitute from Finance and Appropriations be agreed to.

[01:58:16] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Prince William. Thank you, Madam President. Could that go by temporarily?

[01:58:33] Without objection, House Bill 286 goes by temporarily. A bill relating to Bureau of Insurance Essential Health Benefits to Benchmark Plan Selections, Reported from the Committee on Commerce and Labor with a substitute, and from the Committee on Finance and Appropriations.

[01:59:03] The Senator from Charlottesville. Madam President, I move adoption of the Committee's substitute from Commerce and Labor. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Those opposed, no.

[01:59:19] The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam Chair, Madam President, I move that the bill passed. I'd like to speak to that motion, please. Senator has the floor. Thank you. Every year we get bills for mandated services, and they are referred to the Health Insurance Reform Commission, the Herc Commission, that reviews those requests on an annual basis.

[01:59:41] And this is about the result of a couple of years of study from-- this is a Herc bill that adds eight services to our Central Health Benefits Benchmark Plan. The eight services are listed in the bill.

[01:59:58] They start with dual care services and treatment in intragenic, infertility, fertility treatments and diagnosis, hearing aids for individuals of all ages, pasteurized donor human breast milk, prophylaxis diagnosis and treatment of pediatric autoimmune neuropsychotic disorders and the treatment of polycystic ovary syndrome.

[02:00:22] The substitute provides that to the extent that a mandated benefit described in the bill. is included in the Essential Health Benefit Benchmark Plan. The mandate to provide that coverage does not

apply to the individual and small group markets.

[02:00:38] That change will avoid some costs. But this is just, this bill is a result of the HERC review, and I hope that you will pass the bill. - The question is, shall House Bill 328 pass?

[02:00:55] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:01:13] Ayes 24, noes 16. Ayes 24, noes 16. House Bill 328 passes. House Bill 344, a bill relating to property under common ownership creation of easements, reported from the Committee for Courts of Justice.

[02:01:38] Senator from Eastern Fairfax. I move the bill to pass and speak to the motion. Senator has the floor. Thank you, Madam President. House Bill 344 is a bill that sounds kind of dry and lawyer boring stuff, but actually created a lot of consternation in committee.

[02:02:03] It basically says that a private apparent easement may be created for purposes by the owner of the dominant and servient estate by recordation of an instrument that grants or reserves the easement provides that the doctrine of merger does not prevent that grant or reservation.

[02:02:25] What that really means is, I think, and some other people here that do a lot more of this work than I do, is that if an owner wants to change their easement, they can do that. And the doctrine of merger no longer applies, which means that if somebody else comes along and does a change to your property line, because like a condemnation or something like that can potentially wipe out your easement, I think is what it is.

[02:02:58] In any event, all I can tell you is there was a lot of consternation committee because some folks felt like we're changing a lot of longstanding property law with this and creating a lot of unintended consequences. We listened to the debate about it, and we ended up passing it out.

[02:03:18] I suspect there'll be some conversation about this, but it's an area of law that I don't do a lot of. but it's also something that could potentially affect a lot of people because everybody, not everybody, a lot of people own real estate and everybody has easements but they don't even know it. That's what the bill does. The question is, shall House Bill 344 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the

[02:03:51] senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 18, Ayes 18, noes 22. House bill 344 does not pass. House bill 416 a bill relating to use of school buses for public purposes by local governing bodies insurance reimbursement reported from the Committee on Commerce and Labor with an amendment. Senator from Charlottesville. Madam Chair I move that the amendment from the Committee on Commerce and Labor be agreed to. The question

[02:04:27] is shall the amendment from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye aye aye those opposed no the eyes have it the amendment is agreed to senator from charlott's madam chair a move that the bill passed this bill is and speaking to the motion like to speak to the senator has the floor thank you ma'am um this bill is designed to ensure that when a local government local governing body uses a school bus that belongs to the school board they can do so if they pay their proportionate share of the insurance.

[02:05:03] The amendment just removed repetitive language. This was a problem in one of our localities. I'm not sure it is anywhere else, but we want to make clear that that can happen. So I hope you'll vote for the bill.

[02:05:19] The question is, shall House Bill 416 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 29 nose 11. eyes 29 nose 11 house bill 416 passes has bill 422 a bill relating to water utilities prohibition of multiple rate increases within three-year period for for water

[02:05:58] utilities reported from the committee on commerce and labor senator from charlottesville madam President, I move that the bill passed and I'd like to speak to that motion. Senator has the floor. Thank you. This bill lengthens the period of time in which the water company would have to wait to go to the SEC for renewal of their prices, of their charges.

[02:06:23] It's got a reenactment calls on here, so we'll discuss this again next year before it becomes effective. But I hope you will agree with the bill. The question is, shall House Bill 422 pass?

[02:06:39] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? Mrs. Clerk, would you ask her to strike the vote?

[02:07:08] The clerk will strike the vote. If the senators are ready to vote, all in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[02:07:24] Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. ayes 28 noes 12. ayes 28 noes 12. house bill 422 passes. house bill 450 a bill relating to office of vital records fees for certified copies reported from the committee on finance and appropriations with the substitute senator from arlington thank you madam president madam

[02:08:01] president i move that the substitute from finance and appropriations be agreed to The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[02:08:19] Senator from Arlington. Thank you, Madam President. I move the bill pass and speaking to the motion. Senator has the floor. Thank you, Madam President. What this bill does is it permits the Board of Health to prescribe a fee of up to $15 for a copy of vital records and it directs the DMV to collect a fee of $15 for every copy of vital records it issues and to transmit all such fees to the state registrar. Under current law, the fees are limited to $12 and this limit has not been increased since 2004. The bill also authorizes that $13 of each fee shall be credited to a

[02:08:59] special fund to be appropriated by the General Assembly as the General Assembly deems necessary. the state registrar shall report annually on september 15th to the governor and to the chairs of several committees in the general assembly have it explained the bill i renew my motion that the bill pass thank you madam president the question is shall house bill 450 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[02:09:30] senators voted do any senators desire to change their vote the clerk will close the roll uh it's Ayes 21, noes 19. Ayes 21, noes 19.

[02:09:46] House Bill 450 passes. House Bill 483, relating to prescription drug affordability board, establish drug cost affordability review, reported from the Committee on Commerce and Labor with a substitute, and from the Committee on Finance and Appropriations with a substitute.

[02:10:08] The Senator from Charlottesville. Madam President, with recommendation that it be rejected, I move the substitute from the Committee on Commerce and Labor. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[02:10:27] All those in favor of the motion will say aye. Those opposed, no. No. The no's have it. The substitute is not agreed to. Senator from Charlottesville. I move that the substitute from the Committee on Finance and Appropriations be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations now be agreed to?

[02:10:46] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, I move that the bill passed and I'd like to speak to that motion. Senator has the floor. Thank you. This bill is legislation that you all are familiar with.

[02:11:05] It relates to the Prescription Drug Affordability Board that we've discussed multiple times over the last three or four years. The legislation contained in the substitute you just agreed to is what passed on the other body yesterday. So shortly we will see the, maybe today or tomorrow, we will see the Senate bill with the changes and I want to describe a little bit of those changes before we vote.

[02:11:33] This bill does three things primarily. Number one, it changes the Prescription Drug Affordability Board, the name of the bill to a drug affordability basically the whole purpose of the bill is to bring down the cost of prescription drugs and so it establishes this act is going to be called the affordable medicine or the Affordable Medicine Act the second thing it does is the prescription drug affordability become board becomes an advisory panel in empowered to review prescription medication review the trends and make certain recommendations to the Secretary of Health and various

[02:12:12] health agencies out on an annual basis of the details of how the board or the advisory panel are going to be picked don't change a lot from the details of the prescription drug board itself that we've talked about before but it's all spelled out in black and white the third thing this bill does and really the most important thing doesn't take effect until January 1 but it ties itself to the 25 drugs that have already been a lower price has already been negotiated from the federal government, Medicare recipients are already enjoying the benefit of the lower

[02:12:47] prescription costs, and soon everyone else will too under this act. First 10 drugs, then 15 drugs after that, and after that we'll just see. But this will bring down costs for people right away. January 1, so not right away, but certainly we can envision when the prescription drug costs will come down it's that this has been a long time coming but this legislation I think will pass this time and go to the governor and I hope that you will agree with me and vote for the bill the chair recognizes the senator from Lynchburg

[02:13:23] yes thank you madam president rise to speak to the bill senator has the floor thank you madam president and thank you to the senator from Charlottesville who did an excellent job summarizing the the new bill and I think the main thing especially for folks on my side of the aisle who have been against the actual p dab the the board which had authority to set prices that was somewhat controversial for our side but i think this new bill with the panel really sets up the ability for the commonwealth especially when coupled with the

[02:13:58] junior senator from virginia beach's bill on pbms you take we're going i think the commonwealth can say we are attacking prescription drug prices from both sides we're going after the pbms and we're also keeping an eye on the pharmaceutical industry so i think this two-pronged attack we're going to keep an eye on both of them and we're going to look out for the citizens of the commonwealth and do something to finally lower prescription drug costs the next step is to lower our energy cost we'll work on that again next year thank you madam president the question is

[02:14:37] shall house bill 483 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 34 no 6. ayes 34 no 6. house bill 483 passes House bill 593, a bill relating to summons for lawful detainer, additional information,

[02:15:14] legal resources, plain language overview of process reported from the Committee for Courts of Justice with an amendment. Senator from Eastern Fairfax. Thank you, Madam President, I move the committee amendment.

[02:15:30] Senator, thank you. The question is, shall the amendment from the Committee for Courts of Justice be agreed to. All in favor of that motion will say aye. Aye. Those opposed no. The ayes have it. The amendments are agreed to. Senator from Fairfax. I think Madam President, move the bill to pass and speak to the motion. Senator has the floor. I think Madam President, ladies gentlemen, Senate House Bill 593 is pretty simple. It just allows a general district court, the chief judge of a general district court, to authorize the attachment of a plain language

[02:16:05] summary of the eviction process to a summons for an unlawful detainer, which is a lawyer way of saying a lawsuit for an eviction, so that people have a plain language thing attached that explains them what's going on. It's consistent with a, the Supreme Court has an effort going on right now to try to change a lot of the words on these things, like unlawful detainer, warrant debt, et cetera, so that people have a better understanding of what is happening to them in court at least I saw it as consistent with that the committee thought it was a good idea in general although it came out there were some people that had some

[02:16:45] concerns about picking and choosing which which nonprofit entity ought to be able to attach the thing to the summons but in general we thought it was a good idea to get people simple information so they understood what's going on in the legal process I hope we get past the bill the question is shall House Bill 593 pass all in favor of that motion will record their vote side those opposed no are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:17:23] Ayes 24, noes 16. Ayes 24, noes 16. House Bill 593 passes. Madam President. Senator from Fairfax. Madam President, having on page 52 of the calendar, House Bill 26, having voted on the prevailing side by which we adopted that bill, I would move

[02:17:45] we reconsider that vote so i could get things straight question is shall the vote by which house bill 26 was passed be reconsidered all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire

[02:18:19] to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the motion is agreed to. Senator from Fairfax. Thank you, Madam President. I ask that bill go by temporarily and speak

to that motion. Senator has the floor. Thank you, Madam President. Apparently there was some action on this bill I was unaware of in the House of Delegates and they wanted us to accept their version. I did not realize that. Didn't get advised until after we passed it. I need to now go figure out what happened and what the differences are, which I'm going to do. But I just wanted to

[02:18:55] let everybody know where things stand on that. That go by temporarily. Without objection, House House Bill 26 goes by temporarily. House Bill 670, a bill relating to labor and employment provisions, application of law, protection of employees, definition of employer, reported from the Committee on Finance and Appropriations with a substitute.

[02:19:25] Senator from Charlottesville. Madam Chair, I move adoption of the Committee, substitute from Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to all in favor of that motion will say aye aye those opposed no the eyes have it the substitute is agreed to senator from Charlottesville this bill madam chair move that this bill passed I'd like to speak to that please senator has the floor I'm madam madam president um the purpose of this bill is to make sure that labor law applies to employees of the Commonwealth its subdivisions or

[02:20:02] any of its agencies institutions etc and that's essentially what it does the bill defines public body as the term relates to labor employment and provides for the purposes of various requirements related to the protection of employees the definition of employer includes the Commonwealth its agencies institutions and political subdivisions I reiterate my motion that the bill passed the The question is, shall House Bill 670 pass?

[02:20:31] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[02:20:46] The clerk will close the roll. Ayes 23, noes 17. Ayes 23, noes 17. House Bill 670 passes. House Bill 808, a bill relating to insurance, unfair claim, settlement, practices modification of loss estimate reported from the committee on commerce and labor with the substitute senator from charlottesville madam chair i move the substitute from the committee

[02:21:22] on commerce and labor be agreed to the question is shall the substitute from the commit from the committee on commerce and labor be agreed to all in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to senator from charlottesville madam Madam Chair, the record reflects that I voted against this bill in committee, and since, as you noted, only a foolish consistency is the hobgoblin and the small minds, I will move adoption, I will move that the bill pass.

[02:21:54] And will the Senator speak to the motion? And I'd like to speak to the motion. Senator has the floor. This bill prohibits an insurer from altering or amending an insurance adjuster's report, Except in certain circumstances, the bill requires adjusters to retain all versions of the estimate of loss to substitute, removes the prohibition on a public adjuster, modifying an initial estimate of loss under certain circumstances, and prohibits an employer and insurer from reducing a loss estimate without providing certain information.

[02:22:26] The question is, shall House Bill 808 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[02:22:42] Do any senators desire to change their vote? The clerk will close the roll. Ayes 33, noes 7.

[02:22:57] Ayes 33, noes 7. House Bill 808 passes. House Bill 845, a bill relating to unlawful detainer, contested rent and damages reported from the Committee for Courts of Justice.

[02:23:16] Senator from Eastern Fairfax. Thank you, Madam President. Move the bill to pass and speak the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate House Bill 845 is also a new bill we haven't seen before, although we did see it last year and we did pass it and it did get vetoed. The bill basically says that a court, if in an eviction case, somebody comes to court and the judge asks them, do you agree or dispute the amount of rent that you owe?

[02:23:55] If you say you dispute the amount of rent that you owe, that the judge cannot bifurcate the case and grant possession at that moment. They have to continue the entire case for trial so that the amount of rent you owe and your right to possession can all be litigated at the exact same time.

[02:24:11] Apparently, in some general district courts, there were judges that if somebody said, hey, the only thing I got a problem with is I don't owe that amount of rent, but I'm paying my rent, paying my rent, I just don't agree that, you know, I don't owe that last 500 bucks because of whatever, a judge would grant possession on the spot and then continue the case for a few weeks for a trial on damages.

[02:24:33] This says you can't do that anymore. And again, the bill was vetoed last year, passed that, of course, 9 to 6. I'd hope we could pass it again. The question is, shall House Bill 845 pass? All in favor of that motion will record their votes aye.

[02:24:49] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19.

[02:25:05] Ayes 21, noes 19. House Bill 845 passes. House Bill 884, a bill relating to electric utilities' percentage of income payment program eligibility. reported from the Committee on Finance and Appropriations with a substitute.

[02:25:25] Senator from Charlottesville. Madam President, I move that the committee's substitute be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no.

[02:25:41] The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, a number of years ago we created, I move that legislation passed. I'd like to speak to that motion. Senator has the floor. Madam President, a number of years ago we created a percentage of income payment program to assist lower income electric consumers with their monthly bill.

[02:26:03] We capped that, I think, at $25 million in the Appalachian territory and $100 million in the Dominion territory. Those caps are contained in the lines 24 and 25 of the bill and they remain intact. The reality is we've never exceeded more than seven, or we didn't have it in the last year at least, exceeded more than $17 million for use of the cap.

[02:26:28] And this bill enlarges the number, expands the number of people that could benefit from this program. The substitute retains some of the protections. It's not effective until January 1 of 2027.

[02:26:47] This is a good bill, and I hope you will agree with it. The question is, shall House Bill 884 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[02:27:09] The clerk will close the roll. Ayes 21, no's 19. Ayes 21, no's 19. House Bill 884 passes. House Bill 898.

[02:27:25] A bill to direct the State Corporation Commission to determine maximum allowable fees for disconnection and reconnection charged by certain electric utilities. Disconnection for non-payment.

[02:27:47] Reported from the Committee on Commerce and Labor. Senator from Charlottesville. I move that the bill passes. I'd like to speak to that motion. Senator has the floor. Madam President, the clerk just about described the bill with her reading of the title, I guess.

[02:28:05] This bill allows or directs the State Corporation Commission to determine how much utilities can charge to disconnect and reconnect certain utilities from individual customers. I hope you will agree with the bill.

[02:28:20] The question is, shall House Bill 898 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[02:28:38] The clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0. House Bill 898 passes. House Bill 932. A bill relating to the General Assembly and members thereof, the legislative branch of government and legislative commissions, councils, committees and other legislative entities.

[02:29:02] Reported from the Committee on Finance and Appropriations with Amendments. Senator from Hampton. Thank you, Madam President. And I move that the amendments from Finance and Appropriations be agreed to. The question is, shall the amendments from the Committee on Finance and Appropriations be agreed to?

[02:29:20] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Thank you, Madam President. And with that, I would move that House Bill 932 be passed by for the day. Without objection, House Bill 932 is passed by for the day.

[02:29:38] House bill 994 a bill relating to photo speed monitoring devices placement and operation reported from the committee on transportation with a substitute and from the committee on finance and appropriations with a substitute the senior senator from Henrico thank you madam president madam president would a recommendation that it be rejected I move the substitute from the committee on transportation with the recommendation that it be rejected the The question is, shall the substitute from the Committee on Transportation be agreed

[02:30:18] to? All in favor of that motion will say aye. Those opposed, no. No. The no's have it. The substitute is not agreed to. Senator from Henrico. Thank you, Madam President. Madam President, I move the substitute from the Committee on Finance and Appropriations.

[02:30:37] The question is, shall the substitute from the Committee on Finance and Appropriations now be agreed to? All in favor of that motion will say aye. opposed no the ayes have it the substitute is agreed to senator from henrico thank you madam president i move passage and speaking to the senator has the floor thank you madam president uh sb hb 994 authorizes the governing body and locality and planning district 8 alone to provide by ordinance uh for the placement and operation of photo speed monitoring devices

[02:31:11] by a law enforcement agency uh in a safety red zone uh and it maintains the guidelines that we have been working on this session and so i renew my motion that the bill passed the chair recognizes the senator from lynchburg thank you madam president rising to speak to the bill senator has the floor thank you madam president uh there was a these speed cameras have been a big issue this session and i there was just a great report that came out on march 3rd channel 8 news here in

[02:31:43] Richmond. They got the final totals for 2025. So in the year 2025, $54 million in fees from these speed cameras. That's a tax on our citizens. 7.1 million alone from New Kent County on Interstate 64 in 2025. To give you some perspective on this, in 2020, there were $4.2 million

[02:32:15] dollars collected on these speed cameras. Here in 2025, 54 million dollars. We have got to do something to rein this tax in on our fellow citizens. And there's some good guardrails in this bill, but it is still expanding speed cameras. And I hope next year we'll come back and really rein these things in. But I'd ask you to vote against this expansion. Thank you, Madam President.

[02:32:43] The chair recognizes the senator from Shenandoah. Senator has the floor. Also, I want to point out about the fees that these are charged. 25% of these fees go to companies outside of our locality.

[02:33:01] So this isn't going to like court calls or anything like that. This is 25% of these fees that are collected are leaving our community. So I think that's relevant when you're making your decisions. The senator from Norfolk.

[02:33:19] Thank you, Madam President. Speaking to the bill. Senator has the floor. Thank you, Madam President. the one thing that i would say to this bill is that we have an a huge problem with speeding um i myself have been known to be lead foot lucy and i have gotten speed camera tickets and paid them if we don't want the revenue people need to slow down the solution is not doing away with enforcement the solution is for people to slow down if you slow down and you drive the speed limit you won't get a ticket. If you don't get a ticket there's no revenue to the state or the locality.

[02:33:57] Problem solved. Thank you Madam President. Senator from Franklin County. Thank you Madam President. Speak to the passage of HB 994. Senator has the floor. Thank you Madam President. I'm thinking one I need to give my law card over to my favorite senator over there who just talked about being a little lead-footed but still Madam President the problem here is is that we are ceding authority law enforcement authority to machines and we're saying they're infallible and to companies that are only profit-oriented let me give you an example when I have

[02:34:37] defended people who've been charged using these speed cameras and they say don't worry they try to entice you it won't go on your record it's only a civil fine so they're discouraging you from having your day in court but on top of that when you have one of these speed cameras it takes a picture of your car does not take a picture of you speeding calibration may be off there are other factors that may that may demonstrate that the person whose car was was caught in the camera view was not speeding but you don't really have that and I can tell you but if you do you go in with a lawyer you can't lose because they can't

[02:35:15] tell you who was driving that car I had a case just a little while ago a very good friend of mine owns a corporation one of his corporate vehicles went through, they gave him the ticket. Corporations can't commit crimes in traffic violations.

[02:35:30] So what we're saying when we allow this to happen, ladies and gentlemen, is that we are ceding the authority and the human policing that goes with it to a machine and a company that is out for profit, not for safety. And so I would urge everyone in this body, when we start giving up this authority for policing, what's next? An ATM replaces a judge? We just stick the ticket in the machine and it tells us whether you're guilty or not, because that's where we're heading. And I believe if they were going to, yes, I believe you should not speed on our highways. You should travel safely. But when we give up that authority to a machine and to a

[02:36:10] company out of state, we're giving away freedom and liberty of our citizens. Freedom. Thank you, Madam President. The chair recognizes the senator from northern Fairfax. Thank you, Madam President. I rise to speak to the bill. Senator has the floor. Thank you, Madam President.

[02:36:32] The delegate who has been carrying this did so because students in her district walking home from school were killed in an accident where another student was going 80 miles per hour in the school zone.

[02:36:55] 14-year-old Ada Gabrielle Martina Nascalo and 15-year-old Lee Yan Hanji Yan were killed. This is happening in Fairfax County because there are not enough police who are able to be present all over the large area that makes up Fairfax County.

[02:37:23] This bill only pertains to Planning District 8, and I believe the other members from the body who have been arguing against this are not subject to this in their districts.

[02:37:39] The delegate has been working on this for a number of years to try to approach a reasonable way that her constituents and our constituents in our communities are safe.

[02:37:55] There are no acceptable limits of pedestrian deaths, but certainly I think everybody in this body can agree that a child should be safe walking home from school while on the sidewalk and I hope that our colleagues will in their honor vote for this bill.

[02:38:15] The chair recognizes the senator from Roanoke. Thank you madam president just speaking briefly to the bill. Senator has the floor. Thank you madam president I appreciate the senator from Franklin County's comments about the increasing commercialization and profiting of law enforcement which I don't think we should be doing. And just to speak briefly, District 8 is a pretty big place and you might be shocked that those of us that don't live in District 8 regularly drive in District 8 and our constituents regularly drive in District 8, planning District 8. So we care a lot about

[02:38:54] the traffic laws there, especially when they might be different than what they are in the rest of the Commonwealth and our constituents are likely to get picked up by that. Thank you, thank you and so regardless of where it is it's important I would also suggest that we I just can't overemphasize how important it is that we do not go down this process of continuing to commercialize law enforcement and the profit motive behind it thank you madam president the senator from northern

[02:39:33] Fairfax madam president I have since learned that I made a mistake in what I said I would like to correct the record senator has the floor madam president my understanding is that the substitute that is before us it would be pertaining to the whole Commonwealth my apology for misstating that I miss I misheard something I must have the chair recognizes the senator from Eastern Fairfax thank you madam president with the senior senator from Richmond yield for question the Henrico I'm sorry Henrico I forgot he's the senior senator from Henrico senior senator from Virginia will you

[02:40:10] yield yes yes yes eastern fairfax senator from eastern fairfax president um i'm looking at 512 and 513 the bill and it seems to say the provisions of this act shall not become effective unless reenacted by the 2027 session of the general assembly does that mean that this bill if we pass it doesn't do anything unless a different bill comes at a conference we pass a new bill next year Senator from Henrico. Madam President that is the case and there are some

[02:40:48] questions that I have as well on some language because this bill came out of there were some amendments that came out of finance and I'm just flushing through some of those amendments myself and so if it's okay I would like this bill to go by temporarily because one we need to make sure the patron is clear on the reenactment because it is a possibility that the patron would prefer to just take a up-and-down vote and and without the

[02:41:25] reenactment one way or another and then also the question is making sure that it only applies to planning district 8 it is not it is not as clear as I think it should be. The existing language has a locality that's for planning in District 8, and we just want to make sure that it's clear for everybody as opposed to Russian. So if this bill can go by temporarily. Without objection, House Bill 994 goes by temporarily. House Bill 1011, a bill

[02:41:59] relating to compost and other products containing organic soil amendments, infrastructure, Department of Environmental Quality to Department of Environmental Quality tax policy options for monitoring the litter tax study expanded and civil penalties reported from the Committee on Local Government with a substitute and from

[02:42:39] the Committee on Finance and Appropriations. The chair recognizes the senator from Eastern Henrico. Thank you Madam President. I move we adopt the substitute that came out of local government. The question is, shall the substitute from the Committee on Local Government be agreed to? All in favor of that motion will say aye.

[02:42:58] Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Henrico. Thank you, Madam President. I move passage of the bill in speaking to that motion. Senator has the floor. Thank you so much, Madam President. House Bill 1011 now has Senate Bill 226 incorporated into it. The bill does three main things. Where there is a tie bid in a locality for a contract for compost, that locality can give preference to compost produced in that locality or a business whose principal's location is in that locality. It also allows a locality to adopt an ordinance to require generators separate organic waste from solid waste with some specific conditions.

[02:43:37] It also allows permissibility of a waiver if a locality does decide to adopt that ordinance. And lastly it does allow for a civil penalty for violation of the ordinance with an escalating scale the question is shall house bill 10 11 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[02:44:05] desire to change their vote the clerk will close the roll uh 21 nose 19. ayes 21 nose 19 house bill 10-11 passes. House Bill 11-11, a bill relating to civil litigation suspension bonds and irrevocable letters of credit upon appeal. Reported from the Committee for Courts of Justice. The Senator from Eastern Fairfax. Thank you, Madam President. I move the bill pass and speak of that motion. Senator has

[02:44:45] the floor. Thank you, Madam President. Ladies and gentlemen, the Senate, this is a bill that you saw version of last year bill last year increased the appeal bond to twice the amount of this bill last year's

bill was 200 million this one's 100 million last year with 200 million the bill passed 27 to 32 to pass the house of delegates 63 to 32. um the governor vetoed it he he first tried to amend it we rejected his amendment and then he vetoed it i sent a letter to the boy graves

[02:45:22] Commission and asked them to provide a report they gave me a 40 page report on options although they did not make a specific recommendation about an amount but they did say that ever since the expansion of the Court of Appeals has happened the average time it takes an appeal to be heard has gone from about a year to about a year and a half two and a half years and which is part of the reason we need to do something about appeal bonds in terms of amounts they They came back to me and they pointed out that there are 16 states that have appeal

[02:45:59] bonds that are higher than ours, even Mississippi. The states that are at $100 million, which is what this bill proposed, are Iowa, Kentucky, Maryland, and Wisconsin. There are two states that have $150 million appeal bonds, Minnesota and Louisiana, and Illinois goes to $250 million.

[02:46:24] So this bill is about 30% of an Illinois. but in any event we passed a bill with a much higher cap last year double of this last year this is only a hundred million dollars this number has not been addressed since I want to say about I think it's 19 I think it was in the I think it was 2000 I think was the last time this addressed if you want the specific data give it to you but it's been a while and I would hope we could pass this bill because 25 million dollars is it's too low for an appeal

[02:46:58] on thank you madam president the question is shall house bill 1111 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll i 17 knows 23 i 17 No's 23, House Bill 1111 does not pass.

[02:47:38] House Bill 1182, a bill relating to health insurance coverage for contraceptive drugs and devices, reported from the Committee on Finance and Appropriations. The Senator from Charlottesville.

[02:47:57] Madam President, I move the bill pass, and I'd like to speak to that. Senator has the floor. Madam President, this is identical to Senate Bill 361. was carried by the senator from eastern prince william that passed his chamber with a very healthy 23 votes i moved i hope that you will agree with that vote and i reiterate my motion that it pass the question is shall house bill 1182 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any

[02:48:30] senators desire to change their vote the clerk will close the roll i was 23 no 17 eyes 23 no 17 house bill 1182 passes has bill 1255 a bill relating to enter to net energy metering standby charge facility capacity reported from the committee on commerce and labor the senator from charlottesville madam president i move the bill pass i'd like to speak to that motion senator has the floor madam president this bill is new to us this year it increases the minimum capacity

[02:49:09] from 15 kilowatts to an aggregate nameplate capacity of 20 kilowatts of alternative alternating current current for an electrical generating facility for which electric utility customers are required to pay a monthly standby charge as part of the net energy metering program i read my motion that it pass the question is shall house bill 1255 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[02:49:42] senators voted do any senators desire to change their vote the clerk will close the role as 21 nose 19 eyes 21 nose 19 house bill 1255 passes has bill 1377 a bill to establish a task force to examine higher education at Virginia Military Institute report reported from the Committee on Finance and Appropriations with a substitute. Senator

[02:50:19] from Charlottesville. Madam President, I move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from charlottesville madam president i moved that the sub that the bill passed and it's substitute form and i would like to speak to that senator has the floor um madam president the substitute this is the bill that creates a a task force to take a look at at vmi and how they're doing with respect

[02:50:56] to um some of the problems were found in 2021 and how they're integrating um non-white students and females into their student body. The changes made in the substitute are contained in one of the whereas causes, I think on lines 18 through 20. And then that's one change. The second change is that we took out language that threatened the funding of VMI. Part of that was suggested by the patron of the bill. The third change it makes is it changes the

[02:51:33] the membership of the task force, it ensures that we even it up among the senators, four senators, four delegates, four non-legislative members picked by the Speaker, four non-legislative members picked by the Chairman of the Rules Committee.

[02:51:48] I hope you will agree with this bill. The question is, shall House Bill 1377 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[02:52:04] Have all the senators voted? any senator's desire to change their vote. The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House bill 1377 is agreed to. House bill 1411, a bill relating to evidence of defendant's mental condition admissible, reported from the Committee for Courts of Justice with amendments and from the Committee on Finance and Appropriations with a substitute. The senator from

[02:52:39] Eastern Fairfax. With the recommendation be rejected, I'd move the House, sorry, the Committee of Courts of Justice amendments. With the recommendation that they be rejected, the question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of the motion will say aye. Those opposed, no. No. The no's have it. The amendments are not agreed to.

[02:53:09] Senator from Fairfax. I move the Committee on Finance amendments. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to. All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Fairfax. Thank you, Madam President. I would move the bill to pass and speak to the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, this bill is a little bit of a cleanup. It's also a little bit of a reversal of the recent Supreme Court of Virginia case regarding

[02:53:43] legislation was passed by then Senator McClellan back in 2021, which allowed the certain mental condition evidence to be admitted with regard to showing mens rea. Historically, you're only allowed to present that kind of evidence if you're trying to prove an insanity defense. What this bill does is it provides that a defendant's mental condition at the time of the offense can be admitted if it has a

tendency to show the defendant did or did not have a state that is an element of the offense or as an affirmative defense, and it's otherwise immiscible presented with the rules of evidence.

[02:54:20] And you have to present that by expert testimony. So you have to be diagnosed, and an expert has to present evidence as to how it might have affected your mental state. The Senate Finance Committee added in language that increased the amount that could be paid to a court-appointed expert from three to five thousand dollars the senate um courts just committee had removed that cap um we also um removed a lot of other what we saw as extraneous language that was added by the house courts of justice committee this bill might go to conference the way it's written right now

[02:54:56] we'll see but um that's basically what the bill does hope we can pass the bill the question is shall house bill 1411 pass all in favor of that motion will record their votes aye those opposed know are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll i was 21 nose 19. ayes 21 nose 19 house bill 1411 passes

[02:55:28] house bill 1426 a bill relating to limitations on enforcement of judgments docketing of general district court judgments in the circuit court reported from the committee for courts of justice with amendments senator from eastern fairfax i move the committee amendments the question is shall the amendments from the committee for courts of justice be agreed to all in favor of that motion will say aye those opposed no the ayes have it the amendments are agreed to senator from

[02:56:05] fairfax the man president i move the bill passed and speaking the motion senator has the floor thank you madam president uh ladies and gentlemen senate senate or sorry house bill 1426 again is a new bill that we have not seen this session uh but it is a different twist on a different theme we've seen this session this has to do with debt buyers um debt buyers are these private equity guys groups etc that go around and they purchase like thousands and thousands and thousands of unpaid judgments um for like pennies on the dollar and then they find a couple they can collect and

[02:56:44] and they go make money on them. What this bill does is it says that for any judgment entered in a general district court after July 1 of this year, where the judgment is purchased by a debt buyer, the docketing of that judgment in circuit court doesn't extend the judgment collection date by another 10 years to 20 years. It still remains at 10 years. Under current law, if you put the judgment in circuit court, it can go to 20 years. And if you think about it, that runs up a lot of interest at 6% interest on say like $10,000 or $20,000 judgment over 20 years. 6% is a lot of

[02:57:20] money and somebody could sort of sit there and watch the thing grow and then come back 19 years later to collect it what we said is if a debt buyer buys it they can't do that but if it's a human if we want to do it ourselves it's like if it's my judgment or if it's any center in this room's judgment anybody else a human's judgment you don't sell it to somebody you can't get the 20-year benefit so this is mainly aimed at trying to go after these private equity guys that are buying up these massive amounts of debt and playing roulette or playing and playing the lottery with them to go after people that's what the The bill does, I would hope we could pass it.

[02:57:56] The question is, shall House Bill 1426 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[02:58:15] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 1426 passes. Madam President. Senator from Prince William. I'd move to reconsider the vote on page 64 on House Bill 1111.

[02:58:34] The question is, shall the vote by which, just a minute, the question is, shall the vote by which House Bill 1111 did not pass be reconsidered?

[02:59:08] All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:59:24] Ayes 40, noes 0. Ayes 40, noes 0. The motion is agreed to. Senator from Prince William, Senator from Eastern Fairfax. We have the floor amendment.

[02:59:40] I would ask the bill to go by temporarily. Without objection, House Bill 1111 goes by temporarily. Returning to page 66, House Bill 1467, a bill relating to electric utilities, virtual power plant pilot programs, Phase one utilities, reported from the Committee on Commerce and Labor.

[03:00:13] Senator from Charlottesville. Madam President, move the bill pass and I'd like to speak to that motion. The Senator has the floor. Madam President, this is a new bill for us this session, but it's not a new concept. Phase one utilities are, of course, Appalachian power. Phase two utilities are Dominion.

[03:00:31] We passed a bill like this last year for the Dominion territory. We passed a bill like this for the electric cooperatives earlier this session. This bill allows or requires the state Appalachian Power to petition the SEC for approval to develop a pilot project for a virtual power plant.

[03:00:57] I think, Madam Chair, Madam President, you may have introduced this bill for the Dominion Territory last year. bill didn't have any opposition in the committee except from the committee so I would hope that you would agree to pass it the question is shall House bill 1467 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[03:01:29] desire to change their vote the clerk will close the roll I was 31 knows nine Ayes 31, Nose 9, House Bill 1467, passes. House Bill 1479, a bill relating to punitive damages, hit and run drivers, reported from the Committee for Courts of Justice with amendments.

[03:01:57] The Senator from Eastern Fairfax. Thank you, Madam President. I move the Committee of Amendments and speaking to that motion. Does the Senator wish to move the amendment first? No. I'm sorry. I thought I did.

[03:02:15] I thought I moved the amendment, and then I want to speak to it. You want to speak to the amendment? Yeah. Senator has the floor. Thank you, Madam President. So, ladies and gentlemen, this bill has to do with allowing punitive damages to be assessed in cases involving hit and run.

[03:02:32] So, this is when somebody hits a car or a person, and then they leave. The amendment that was made in committee was to remove property damage. So, if it's a property damage only case, you cannot get punitive damages. So in other words, if somebody runs into your car, totals it, and leaves your car on the side of the road and doesn't leave their note with their name on it, you cannot get punitive damages.

[03:02:54] I didn't like that amendment, but everybody else seemed to like it. But I think if somebody wrecks your stuff and doesn't tell you who they are, it's bad and not nice and lots of things. In fact, it just happened to me last year.

[03:03:14] So it happens a lot. And I think when people wreck other people's property, they should leave their name so that you can hold them accountable. And if you don't, there ought to be increased consequences for that. And so if you all want to adopt the floor amendment, we can do that. But I just thought I'd explain the floor amendment before we made it.

[03:03:32] And that's what the, I'm sorry, not the floor amendment, the committee amendment. That's what the committee amendment does. The question is, shall the amendment from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye.

[03:03:49] those opposed no the chair is not certain this will be a recorded vote all in favor the question is shall the amendment from the committee for courts of justice be agreed to all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll

[03:04:25] 26 no's 14. Ayes 26, no's 14. The amendment is agreed to. Senator from Eastern Fairfax. Thank you, Madam President. I move the bill to pass and speak to that motion. Senator has the floor. So ladies and gentlemen of the Senate, now what the bill does is it says that you can get punitive damages if it's a hit and run case and it only involves personal injury or wrongful death, which is obviously really bad too.

[03:04:55] And we're actually seeing increased incidence of this in Virginia for a lot of different reasons I'm not going to get into. But you see it mainly with a lot of pedestrians and a lot of cyclist cases. But anyway, the committee thought it was a good idea that if you're going to injure somebody and then flee, that there ought to be increased consequences of that and not just pay pain and suffering and property damage, etc., like you would in a normal personal injury case.

[03:05:25] normally you have to show malice to get punitive damages and the one exception we made to that is for DUI. So this basically makes hit and run equivalent to DUI when it comes to punitive damages. The chair recognizes the senator from Hanover. The question is shall House Bill 1479 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk

[03:06:01] will close the roll. Ayes 37, noes 3. Ayes 37, noes 3. House Bill 1479 passes. House Bill 1481, a bill relating to labor and employment notification of federal and state statute of limitations reported from the Committee on Commerce and Labor with substitute. The senator from Charlottesville. Committee substitute be agreed to. The question is, shall the substitute from the committee on commerce and labor be agreed to all in favor of that motion we'll say aye

[03:06:39] aye those opposed no the ayes have it the substitute is agreed to senator from charlottesville madam president um i move the bill passed i'd like to speak to that motion the senator has the floor madam president this bill is amended requires um employers of more than 50 15 people or more to post a notice that the employees can complain about 300 days from an alleged unlawful discriminatory practice involving sexual assault, harassment, or any other form of

[03:07:12] discrimination, that you can seek enforcement from the department, the U.S. Equal Employment Opportunity Commission, or the Office of the Attorney General within 300 days, and that notice has to be posted for employers of more than 15 people.

[03:07:28] I hope the bill will pass. The question is, shall House Bill 1481 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[03:07:44] Do any senators desire to change their vote? The clerk will close the roll.

[03:07:55] Aye 17, noes 23, House Bill 1481 does not pass.

[03:08:26] Returning to page 51, post bill 489, and there's a floor amendment. Senator from Eastern Fairfax. Move the reading of the floor amendment. The question is, shall the reading of the floor amendment be waived? All in favor of that motion will say aye.

[03:08:44] Aye. Those opposed, no. The reading is waived. Senator from Fairfax. Move the floor amendment, speaking to the bill. Senator has the floor. Thank you, President. This is just the reenactment clause that I thought the bill had that we had added in courts of justice. When I went back and looked at what in there, I hope we could add this reenactment clause, which will force a conference on this if the House wants to clean this thing up any further.

[03:09:07] The question is, shall the floor amendment be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The amendment is agreed to. Senator from Fairfax. Haven't been previously explained. I move the bill pass. The question is, shall House Bill 489 pass?

[03:09:25] All in favor of that motion will record their votes, aye. Those opposed no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 21, Noes 19.

[03:09:45] Ayes 21, Noes 19. House Bill 489 passes. On page 52, House Bill 26. The Senator from Eastern Fairfax.

[03:10:02] Thank you, Madam President. I'm still trying to figure out what's going on with that bill as is Senate patron. I would ask that they go by for the day. Without objection, House Bill 26 goes by for the day.

[03:10:25] House Bill 286 on page 56. The senior senator from Prince William. Thank you, Madam President. Move the bill pass. And speaking to the motion. Senator has the floor. Thank you, Madam President.

[03:10:41] This is the substitute adopted from the Committee of Finance and Appropriations. This is now a Section 1 bill studying the impacts directing the Secretary of Veterans and Defense Affairs to assess the most appropriate manner to deal with the key elements of the bill around deployment of the National Guard. So it is now a section one study bill and move the bill's passage. The Senator from Orange. Thank you Madam President. Speaking of the bill. Senator has the floor. Madam President, we are, I know it's section one and just going to study but and maybe it does need to be studied or maybe that's the remedy here based on maybe

[03:11:19] the patron from the house but the reality is is that we are trying to set up something similar to congress where our military has oversight and the the big difference between our national guard madam president and our united states armed services is we don't declare war and this the way the uh substitutes drafted i know again it's going to a study but when you look at the original language of it it was talking about the guard mobilization voting integrity allowing the General Assembly to come in and help make those decisions with the governor who

[03:11:58] should have all the authority to be able to deploy the guard at a moment's notice not have to get a quorum from the legislature to do that there's been cases in our state where Southwest and Southside got hit with a hurricane the governor deployed the National Guard immediately and I just think this is trying

to take power away from our governor and I don't think it's the right thing to do. The question is, shall House Bill 286 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to

[03:12:36] vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 286 passes.

[03:12:52] Senator from Roanoke. Thank you, Madam President. Having voted on the prevailing side in which the Senate passed House Bill 1182. Can we please briefly reconsider that vote?

[03:13:16] The bill was on page 64 so that a member can reconsider their vote. The question is, shall the vote by which House Bill 1182 was passed be reconsidered? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote?

[03:13:42] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The motion is agreed to. Senator from Charlottesville.

[03:13:58] Madam President, having previously explained the bill, I move that it pass. The question is, shall House Bill 1182 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote?

[03:14:13] have all senators voted do any senators desire to change their vote the clerk will close the role uh it's 24 no 16 eyes 24 no 16 house bill 1182 passes on page 63 has bill 994 the senior senator

[03:14:46] from henrico madam president um i move the bill pass and speaking to that senator has the floor madam president in consultation with the senate patron and the house patron uh hb 994 is identical uh with one exception to uh the senator from norfolk's legislation that came out of this body uh with amendments from senate finance uh and it does not uh solely impact planning district 8

[03:15:25] because it is identical to the senator from norfolk's legislation with one exception and that is the um exception that the senator from eastern uh fairfax uh shared uh which is the uh enactment clause at the end of the legislation from senator williams graves and the hope is that this will go into uh conference and we will have a product that everyone can vote on just a reminder this legislation from Williams graves as before you with when it did not have the

[03:16:01] enactment clause passes by the with 27 votes the question is shall House Bill 994 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 19

[03:16:31] no's 21. Ayes 19, no's 21. House Bill 994 does not pass. On page 64, House Bill 1111, and there's a floor amendment. Senator from Eastern Fairfax. Thank you, President. Move the waive reading of the floor amendment. The question is, shall the reading of the floor amendment be

[03:17:03] waived? All in favor of that motion will say aye. Those opposed, no. The no's have it. The reading of the floor amendment is not waived the floor amendment on House Bill 1111 page 2 line 89

[03:17:35] after strike $100 and insert $50 senator from eastern Fairfax and brezad move the floor amendments mean that motion senator has the floor um thank you madam president and um madam clerk i apologize to you on behalf of the senator from franklin county made you read that um but the uh the amendment before you basically just changes the maximum appeal bond from 100 million to uh 50

[03:18:12] million which um i believe brings us into alignment with a a few more states um and uh doubles the amount and by the way if you had adjusted the existing amount for inflation based on the last time we amended it would be at 50 million dollars so effectively it's with inflation not really a change at all so i'd hope with this number we could actually pass it this time the question is shall the floor amendment be agreed to all in favor of that motion will say aye

[03:18:50] those opposed no the ayes have it the floor amendment is agreed to senator from fairfax thank you madam president been previously explained i'd move the bill pass the question is shall house bill 1111 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 39 knows one ayes 39 knows one house bill 1111

[03:19:29] passes turning to page 67 regular calendar senate joint resolution on first reading senate joint resolution 209 confirming appointments by the governor of certain persons communicated to the general assembly march the 6th 2026. senator from virginia beach thank you madame president

[03:20:02] i move that the bill be engrossed okay that's tomorrow memorial resolutions senator from eastern fairfax we're on page 68 senator madame president i move the memorial resolutions on pages 68 through

[03:20:35] H.J.R. 192 to S.R. 117 be considered in a block in the usual manner waiving the reading of the resolutions thereof with the understanding that any senator desiring a resolution to be removed from the block will do so after the clerk has read the title of the bill. The question is, shall the memorial resolutions on pages 68 through 72, H.J.R. 192 through S.R. 117, be considered in the block in the usual manner, waiving the reading of the resolutions thereof, with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the title of the resolution.

[03:21:14] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The motion is agreed to. The resolutions are now before us in a block. The clerk will now read the titles of the resolution.

[03:21:45] House Joint Resolution 192, celebrating the life of Bill Franklin Vihon. House Joint Resolution 208, celebrating the life of Deborah Fisher Williams. House Joint Resolution 212, celebrating the life of the Honorable Charles Douglas Poindexter.

[03:22:08] Senator from Franklin County. Thank you, Madam President. Can HJ212 come out of the block? Without objection, HJR 212 is out of the block. House Joint Resolution 217, celebrating the life of Anna Lou Arrow Schauberg.

[03:22:29] House Joint Resolution 218, celebrating the life of John Wendell Martin, Ph.D. House Joint Resolution 220, celebrating the life of Kitty Clark Stevenson.

[03:22:45] House Joint Resolution 221, celebrating the life of Elizabeth Flanagan Edwards. House Joint Resolution 223, celebrating the life of Wayne Cornelius Rapp. House Joint Resolution 229, celebrating the life of Ann Canty Payne.

[03:23:07] House Joint Resolution 230, celebrating the life of Ireland Crowder People. House Joint Resolution 232, celebrating the life of Annabelle Morgan Edge. House Joint Resolution 233, celebrating the life of the Reverend Dr. Franklin James West Sr.

[03:23:31] House Joint Resolution 235, celebrating the life of Catherine Agnes Martin Hudgens. House Joint Resolution 241, celebrating the life of Richard Edelman Crouch.

[03:23:47] House Joint Resolution 242, celebrating the life of the Honorable William T. Newman Jr. House Joint Resolution 246, celebrating the life of Cynthia Sue Swine.

[03:24:03] House Joint Resolution 248, celebrating the life of John Caffrey Angel. House Joint Resolution 250, celebrating the life of the Reverend Dr. Nathan Dell. House Joint Resolution 251, celebrating the life of Charles Martin Caravati.

[03:24:30] He's my eye doctor. Okay, junior MD. House Joint Resolution 252, celebrating the life of Demetrius A. Julius, M.D. House Joint Resolution 253, celebrating the life of Joseph Towler Knox.

[03:24:51] House Joint Resolution 254, celebrating the life of Harry Hudnall Ware III, M.D. House Joint Resolution 255, celebrating the life of Jack Holland Spain, Jr.

[03:25:06] House Joint Resolution 256, celebrating the life of Charles Lorraine Cavill. House Joint Resolution 257, celebrating the life of Victoria Reed Argabright.

[03:25:24] House Joint Resolution 258, celebrating the life of Donald McLean Switz, M.D. Senate Joint Resolution 255, celebrating the life of Michael R. Frey. Senate Joint Resolution 270, celebrating the life of Lawrence Max Beyer.

[03:25:46] House Joint Resolution 271, celebrating the life of Donald Wise Huffman. Senate Joint Resolution 272, celebrating the life of Alvin Lee Hale. Senate Joint Resolution 275, celebrating the life of the Honorable John Granger McFarland II.

[03:26:08] Senator from Roanoke. Thank you, Madam President. I'd ask that Senate Joint Resolution 275 please come out of the block. Without objection, SJR 275 is out of the block. Senate Joint Resolution 278, celebrating the life of Barbara Griffiths Decatur.

[03:26:28] Senate Joint Resolution 283, celebrating the life of Robert Parrish Green. Senate Joint Resolution 284, celebrating the life of La Bravia J. Jenkins. Senate Joint Resolution 294, celebrating the life of the Honorable Harry Flesher Collins, Jr.

[03:26:50] Senate Joint Resolution 117, celebrating the life of the Honorable Gerald Edward Connolly. Senior Senator from Fairfax. Thank you, Madam President. I move that resolution come out of the block.

[03:27:08] Without objection, SR 117 is out of the block. The resolutions will be agreed to in the usual manner, that is, all resolutions except for HJR 212 on page 68, SJR 275 on page 71, and SR 117 on page 72.

[03:27:35] All those in favor of agreeing to the memorial resolutions, please rise. The resolutions are agreed to. I was joined to Resolution 212.

[03:27:58] Madam President. The Senate will wait until everyone is seated in their seats. Senator from Franklin County.

[03:28:13] Thank you, Madam President. Many words have been spoken about this good man and fine Virginia gentleman, so now we commend him to walk with the angels. And I move that H.J. 212 pass. H.J.R. 212 will be agreed to in the usual manner.

[03:28:32] All those in favor of agreeing to the memorial resolution, please rise. The resolution is agreed to. - Senate Joint Resolution 275.

[03:28:51] - Senator from Roanoke. - Thank you, Madam President. I moved that the Senate passed Senate Joint Resolution 275 and speaking to that motion. - Senator has the floor. - Thank you, Madam President. Former Senator Granger McFarland was a Roanoker and like a lot of people that ended up in Roanoke politics, just like our former governors and attorney generals that came from Roanoke, he was not born in Roanoke.

[03:29:17] He came there for opportunity, But earlier, as a young businessman in the Fredericksburg area, he ran a spirited primary campaign in 1959, and he ran these great ads in the newspaper that very clearly just spelled out what massive resistance was doing in the Commonwealth to public schools, to the local people's children's opportunities and children elsewhere.

[03:29:44] He was not successful in that primary, but it was an important campaign. And then in the '70s, by that time he had moved to Roanoke and he ran for House of Delegates there. He wasn't successful in that race either. And in 1983, he got elected to the Virginia Senate.

[03:30:00] And his record in the Virginia Senate suggests that he probably was a lot happier in the Senate than had he been in the House all those previous years, because he was highly independent. And he was very independent on a wide variety of issues.

[03:30:16] was a major project in our area in the Roanoke Valley at the time that a lot of newspaper ink was spent on and he was on the losing side of it. Tens of millions of Virginia tax dollars went into this project. A few decades later it was deemed not a success and it turned several older folks kept saying you know Granger was right about that and that was actually the formal position this General Assembly took just a few weeks before his passing last summer. So it's kind of nice that he got to see everyone agreeing with him, although had

[03:30:53] everyone taken Senator McFarland's approach to begin with, the Commonwealth would have had tens of millions of dollars to spend on other things. He was just a really interesting guy, highly successful in business, highly entrepreneurial, started lots of businesses, and he was just a great guy to to talk to he was a very strong Democrat but he was very happy to talk to anyone about what they thought they could do to improve the Commonwealth and I really appreciate him and madam president I'd like to yield to the senator from Charlottesville the senator from Charlottesville has the floor speaking

[03:31:30] to the resolution senator has the floor um thank you and I I didn't serve with Granger McFarland he was not a reelected the same year I was elected to House of Delegates so I knew him primarily through Democratic Party functions in the 6th District what was then the 6th District of Virginia and then later on it I got to know him a little bit better he was he was a guy that was never afraid to take a position you know I've talked I talked yesterday about how things run through Portsmouth now and at one point they ran through Norfolk but before then but in the late 80s to first to a certain extent they

[03:32:07] ran through Roanoke you know you you had down the hall of Dick Cranwell the late Chip Woodrum the late Vic Thomas on this end of the hall you had Granger and before him a couple before 1983 he defeated um Ray Garland who was a one term state senator in 1979 had defeated Bill Hopkins Bill Hopkins was a Senate majority leader in the 70s from Roanoke and and Bill Hopkins has some current

connections to the legislature we can talk about another time but Granger was it was a great guy and the thing I will forever hold my heart about Granger you

[03:32:45] know I knew him better when when I was going through some statewide events and he always had oh you know he would always introduce me to people and take me places throughout the Roanoke Valley but after the last of those events did not work out he drove the hot springs took me out to lunch and basically put alarm around me and said, "Don't worry, keep your head up and keep working."

[03:33:09] Granger McFarland had an eye on the future. He was the kind of legislator we all would hope to be. Senate Joint Resolution 275 will be agreed to in the usual manner.

[03:33:27] All those in favor of agreeing to the memorial resolution, please rise. The resolution is agreed to. Senate Resolution 117.

[03:33:46] The senior senator from Fairfax. Thank you, Madam President. that the resolution Senate resolution 117 celebrating the life of the Honorable Jerry Connolly congressman from the 11th district the agreed senator has the floor thank you madam president when I was in high school I went to Woodson High School in Fairfax City and right after we opened the school they built a tank farm about two blocks away from the school and everybody said it was gonna blow up, kill us all. Well, it didn't. It leaked. It leaked into the Mantua

[03:34:24] neighborhood and therein is the start of the political career of Gerald Connelly who worked as a representative in the local community homeowners association. He'd had a career before that and during that on the Senate Foreign Relations Committee and was primed for a career in public service and what a guy, what a force what a powerful human being that brought his his knowledge and his skills and his ability to the mostly Fairfax County area of but also Prince William over the years to the citizens of the Commonwealth and you couldn't help but

[03:35:02] know that every time Jerry would speak he'd start off with a with a story of some kind or another or a joke and I remember one it was always he always had new material and I remember one where he said he got a call at like oh dark 30 in the morning like five o'clock and somebody said he said supervisor Connelly there's a deer in my yard dead and he says well why don't you call animal control he says she said well I didn't want to bother them but that was the kind of guy he was you know always had a always had a story always had a way to relate to people he was relentless in his service to constituents you couldn't find an event

[03:35:40] that jerry connelly wasn't there lending his support to it uh he and his wife smitty uh were just stalwarts of the democratic party in uh in northern virginia and uh what started out as a small event uh in his backyard when he first got started as uh as a supervisor and then chairman of the board of supervisors in fairfax uh turned into the largest political event uh in the largest county in the commonwealth of virginia uh he was a great great uh speaker he was a passionate man

[03:36:11] and uh it was uh an interesting aspect you know to you know to his life that his dedication led to his being observed and sort of voted on as the most effective congressman in the united states congress several years ago that's the kind of guy he was he put everything into his job we miss him we miss him uh tremendously and uh i was glad to to to see that his uh chief of staff james walkenshaw who's who came after him to the board of supervisors in fairfax succeeded him in congress

[03:36:50] and it's a legacy that he's left us with and i again i move that we agree to the memorial resolution thank you madam president chair recognizes the senator from northern fairfax thank you madam president speaking to the resolution senator has the floor congressman jerry connelly former chair of the board and good friend to so many of us in elected office and people who are active in the fairfax county in northern virginia region will continue to mourn

[03:37:22] his loss he was not only the best friend to the federal workers that you know the united states has probably ever had he always had their back he fought for the little guy he put his money where his mouth was he was not someone who blew hot air but if he told you he was going to do something you better believe he was going to do it i got to know him very well over the course of the past 20 years he was somebody who was always generous with his time he showed up to community events

[03:37:59] i can remember in 2004 maybe i was organizing something in herndon didn't know him well but he showed up to make sure that he was standing by my side and by other folks in our community to say this is an important event and that's the way he governed he was there for people he was true to his word and i will never um you know i he will never be replaced he was somebody who was always willing to sit down with me to give me advice to help strategize to talk things through

[03:38:36] on a personal level but also had the sharpest political mind and was always ready with a fact a historical perspective some sort of a smart and thoughtful response to difficult situations He was a one-of-a-kind person, and there aren't many of them like him left, and I just really appreciate that I had the opportunity to know Congressman Jerry Connolly and to consider him a friend.

[03:39:10] Thank you. Senior Senator from Prince William. Thank you, Madam President. Speaking to the resolution. Senator has the floor. Thank you. I wanted to just share a few thoughts on the congressman, the lead congressman, and also thank him for his continued presence and interest in Prince William County he took a great deal of time to make sure to visit even though a good part of his district wasn't in Prince William and that mattered is someone showing up spending most of his career in Fairfax County he'd spent the time to come into the community and learn what Prince William County's issues were and and people saw

[03:39:49] all that because it wasn't just during election year, it was every year. In every major issue, he was attentive to what was going on and that was appreciative. But on more of a personal note, we ended up sharing a really important appreciation for one individual that I recognized a lot more about the Congressman than I thought before.

[03:40:15] And that was Father Jerry Connolly, I'm sorry, Father Jerry Creighton, rather. And Father Creighton was a parish priest in my home parish for many years, but also in Fairfax County I didn't know for many years, which is where the Congressman Conley also began to know him.

[03:40:39] And at Father Creighton's funeral, we sat next to each other and we would share stories about Father Creighton. But what I realized was how impactful he understood that people in our communities that are the real doers, Father Creedon was probably the earliest supporter of immigrants, no matter where you came from, what your situation was, you had to find a pathway to help people as God's creatures.

[03:41:06] And I think Congressman Connolly understood that from his studies in Catholicism and the seminary and many other really deep faith beliefs that he held. But I think what is important is how the

congressman used his role to lift up others in the community that were doing some of the most important work.

[03:41:25] And I think he saw that as someone who came up through local government, how important those individuals are and how we can use our office to help uplift them. Often we get detached, and I see people get detached at the federal level.

[03:41:43] And Congressman Connolly did not do that. He always understood those in the community that were doing the important things to help the community advance and grow as a community and not divide. And so, Madam President, Congressman Conley will be missed.

[03:42:01] Prince William County is grateful to his service to the Commonwealth and appreciate your time. The Senator from Central Fairfax. Thank you, Madam President, speaking to the resolution. Senator has the floor. Madam President, I just want to really briefly talk about the Honorable Congressman Jerry Connolly.

[03:42:23] I've had the pleasure of getting to know him when I got more involved with the local Democratic Party and really try to be an advocate in my earlier days. And, you know, there were certain things that you could see elected officials will do that sort of says that's the kind of person I want to be going forward, and he was one of those guys.

[03:42:41] He made sure he talked to every single person at every event that he was at. He made sure, whether you were the little person in the room or the largest owner, that you got a minute with him. And when I decided that I was going to run, I tried to call a lot of my elected officials and really have a conversation.

[03:43:00] And, you know, his people reached out and said, hey, he wants to have a sit down with you and really talk to you about running. Come to our district office and, you know, he'll be there. I get there, and I'm waiting. Half an hour goes by. I'm thinking, you know, he's super busy. He won't be here. And I continue to wait, and he shows up. This man says, I drove from D.C. just to come here, just to meet with you. Instead of spending about 20 minutes, he spends over an hour having a conversation about what it means to run, why it matters, why constituent services matter,

[03:43:37] and how he got elected in his story and within that hour of conversations i realized uh there are many leaders who will leave a footprint that cannot be filled and he was one of those guys and he will uh and he had become one of those guys uh to the point where if any one of us could be as close to how he dealt with constituent services how he made sure that every single person in the room felt important I think we would be you know great people just like he was and I just personally want to share that part because as a new person who was

[03:44:14] running had essentially you know already written off that I was not going to win he was the only one that truly had that conversation to give me the nod to say just keep doing what you're doing and good things will happen so with that I just want to share that the senator from Eastern Fairfax thank you Thank you, Madam President.

[03:44:39] Speaking to the resolution. Senator has the floor. Thank you, Madam President. I'm going to speak about this a whole lot more tomorrow, because we're going to do a center out presentation for Congressman's family, both in the House and the Senate. But this is one thing I wanted to mention.

[03:44:54] You never, ever heard Congressman Connolly speak if he did not remind you how many days it was until the holiest day of the year, just St. Patrick's Day. So I just want to remind everybody that the holiest day of the year is six days from today.

[03:45:12] And I hope that on St. Patrick's Day everybody has a chance to raise a pint to Congressman Connolly because that's exactly how he would expect everybody to celebrate that day along with their corned beef and cabbage, which he served every year, which I never really ate at his party, but I had many pints of Guinness.

[03:45:34] And so I just want to remind everybody of that, but Congressman Connolly was quite a force in Northern Virginia and around the state, and at the time he passed away, he was really, I think, increasing presence around the country when it came to, especially on foreign policy matters and issues relating to the federal government, the federal workforce, which is really important to the Commonwealth of Virginia, given his seniority on the Government Affairs committee in Congress, and so he is really a big loss for the entire state, but we'll have a little more time to talk about him tomorrow, but just want to make

[03:46:11] sure everybody remembered St. Patrick's Day is in six days. The senator from Western Princeville, William. Thank you, Madam President. I have a speech resolution. Senator has the floor. Thank you, Madam President. I approach this a little bit different from some other folks because I covered him as a newspaper reporter going back to 2008 when he was first running for Congress, and he at the time He was still Fairfax County Board of Supervisors chair.

[03:46:35] And I remember he had this little button. It was a green and white button. It said, Fund Transportation Now. That was in 08. Fast forward nine years when you saw my first yard signs. It said, Fix Route 28 Now. You all know where I got it from? It was Jerry. And I remember in 2010, so this is, you know, this is the Tea Party year.

[03:46:55] We had a lot of anger in western Prince William County when he was still representing Haymark and Gainesville and such, right? and he comes out to a town hall meeting at Heritage Hunt. This was back when Heritage Hunt, and I don't know if some of the folks here might actually remember this, Heritage Hunt at the time was like as Republican territories you're going to get in western Prince William County, right?

[03:47:15] And it's now in my district today. Yes, I did win it last time. But anyways, so he shows up at this town hall meeting at Heritage Hunt, and there's way over 100, maybe 200 people or so are over there. And they're grilling him about the Affordable Care Act, one after next after next.

[03:47:31] And one person stands up, Madam President, and says, did you read the bill? And he goes, in that thick Boston nasally accident that he had, he goes, yeah. And it was something along the lines of it. He goes, yeah. And if you read it like I did, then you found the typo on page 276 and the third line on this part right here, blah, blah, blah, blah. He had gone through this thing line for line for line when he was being briefed and like going over after days and days because that's the policy wonk side of him that was so prepared for anything at any time and it actually

[03:48:08] made it really fun and a challenge to cover him because it was so hard to stump him on anything. He just knew thing after thing after thing and the accomplishments that he has, the silver line For example, for the metro station, now that we have railed to Dulles, Congressman Connolly championed that from the time he was on the Fairfax board.

[03:48:31] I mean, for years and years and years. Transportation was really heart and soul of one of his main policy stuff. And I'll just say personally, especially since Senator Evans is no longer part of the body here, just on behalf of the LGBTQ members of the General Assembly, he fought for us constantly.

[03:48:47] He had 100% all the time. Him and I did an event together in Fairfax during Pride Month and everything, and he was one of the only two Democrats in the Virginia delegation who voted against the NDAA reauthorization just because he knew that taking TRICARE coverage away from trans kids was wrong.

[03:49:06] And I'm just so grateful that he served with not just honor and policy knowledge, but he did it with humor. He did it with so much joy. and I think he had the most joy when he got to really get into it with so if another person and he had to go into a head-to-head debate I think he loved in the intellectual challenge of public service more than anything and I think it was a really good example that he left for a lot of us of read the bills understand the content and try to enjoy the job while the people keep sending

[03:49:42] back to it because what else can you do other than be the best public servant who the people have elected you to be. Thank you Madam President. The junior senator from Loudoun. Thank you Madam President. I just want to share brief sharely. The senator has the floor. Thank you Madam President. Speaking to the to the memorial resolution I was very fortunate to spend some time with cut the congressman, when he was very active in the party in Loudoun County, obviously he never had any of Loudoun throughout his congressional career, but I would sit down, talk to him

[03:50:21] during party meetings and events, and he was so generous with his time, and he would spend time with me giving best practices, you know, how to grow the party, how to engage about constituent services, and I'm very grateful, I was very grateful for the time he spent with me and the guidance as he gave and he would always check and say how is Lowden doing and he'll say you know invite me I'll come there I'll spend more time with you all so I'm very grateful for first time and I'm very grateful for the memories thank you the senator from Arlington thank you madam

[03:51:00] president I rise to speak to the motion senator has the floor thank you madam president I knew Jerry Conley when I was a supervisor in Arlington County and he was on the Fairfax Board of Supervisors and then chair. So local government, as many of you know, is a very interesting place to start one's career. It's one of those levels of government that touches everybody's life and they know it. They know who to go to. What we should remember about Jerry Conley is he was one of those folks who could really put his values into action through

[03:51:38] public policy he was a talented guy very talented had a great intellect had great wit but he knew how to read people too and he knew how to bring people along i can remember having lively conversations about smart growth i used to tell him jerry you're funding metro now now you need to get housing near the metro you need to get jobs near the metro why don't you guys really adopt policies on mixed development mixed use oh we'll get there we'll outdo arlington you have my word so back and forth back and forth we'd have these conversations and sure enough fairfax became one

[03:52:15] of the uh leading models for a county its size to adopt mixed use development and to really embrace the smart growth model um because of the environmental benefits and and the human benefits of you know being close to where you work and not having the stress of a commute and also gerry conley is responsible for the housing trust fund that fairfax county set up which is funded with their local dollars

um and i think that's remarkable because we need more more dollars available to actually designate units as affordable and we need more

[03:52:54] units, period. So the funding that the county was able to set up, the policies to promote greater supply of housing, workforce housing, affordable housing, a lot of those policies started with Jerry Conley when he was on the Board of Supervisors. Then of course he moved on to Congress and brought all that experience, talent, knowledge, and I would say just grit.

[03:53:19] He if he wanted something done you could count on Jerry getting it done He wouldn't commit to win but you knew it was going to get done and it was such a joy to work with him It he was happy. He was a happy warrior. He loved what he was doing He believed in what he was doing and he had the talent to really serve the constituents of Fairfax County And eventually the entire country has a congressman extraordinarily well So I'm delighted that we're honoring him, and I look forward to the vote on this resolution.

[03:53:49] Thank you. SR-117 will be agreed to in the usual manner. All those in favor of agreeing to this memorial resolution, please rise. The resolution is agreed to.

[03:54:25] Commending resolutions. The senator from Eastern Fairfax. Madam President, I move that the commending resolutions on pages 72 through 81, SJR-189 to SR-122. Be considered in a block by voice vote, waiving the reading of the resolution with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the number of the bill or the resolution.

[03:54:46] The question is, shall the commending resolutions on pages 72 through 81, H.J.R. 189 through S.R. 122 be considered in the block by voice vote, waiving the reading of the resolutions with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the number of the resolution all in favor of that motion will say aye those opposed no the eyes haven't the motion is agreed to the resolutions are now before us in

[03:55:17] the block the clerk will read the numbers of the resolution house joint resolutions 189 190 191

[03:55:27] 193 194 196 197 198 199 200 201 202 204 205 206 207 209 210 211 213 214 215 216

[03:55:58] 219 222 224 225 226 227 228 234 236 237 238 240 243 244 245 247 249

[03:56:26] Senate Joint Resolutions 218, 257, 258, 259, 260, 261, 262, 263, 264, 265, 266, 267, 268, 269, 273, 274, 276, 277, 279, 280,

[03:57:01] 281, 282, 285, 286, 287, 288, 289, 290, 291, 292, 295. Senate resolutions 114, 115, 116, 118, 119, 120, 121, 122.

[03:57:31] The question is, shall the resolutions be agreed to? All in favor of agreeing to the resolutions will say aye. Those opposed, no. The ayes have it.

[03:57:47] The resolutions are agreed to. Madam President. Senator from Eastern Fairfax. Would it be possible for me to rise for an announcement? Senator has the floor.

[03:58:06] Thank you. Ladies and gentlemen, I just wanted to make sure, I didn't mention this at the beginning, but one other thing we're going to do a little differently today is we're going to do the conference reports and I think the unfinished business at the end of the calendar instead of at the beginning. So people have more of an opportunity to review the amendments that are coming back and

the conference reports and all that. I think going forward, we're going to do the conference reports at the end of the docket every day. So you all might feel like we're wrapping up. Even though we do have a supplemental calendar, we still have not gone through any of the amendments to Senate bills or the conference reports.

[03:58:44] So we still have plenty to do. I want to make sure everybody understood where we are. Thank you, Madam President. Senator from Virginia Beach. Thank you, Madam President. Having voted on the prevailing sign of which House Bill 994 on page 63 did not pass, I move that we reconsider the vote.

[03:59:09] House Bill 994 on page 63. Just one second, Senator.

[03:59:45] is shall the vote by which house bill 994 did not pass be reconsidered all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll i was 40 no zero Ayes 40, no, 0. The motion is agreed to.

[04:00:22] Senior Senator, Senior Senator from Henrique. Thank you, Madam President. Having already explained the legislation, I move that this legislation pass.

[04:00:39] The question is, shall House Bill 994 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? do any senators desire to change their vote the clerk will close the roll as 23

[04:01:05] no 17 eyes 23 no 17 house bill 994 passes supplemental calendar number one

[04:01:40] unfinished business house senator from Eastern Fairfax thank you for the slow motion. We're on the supplemental calendar, the blue calendar. Madam President, I move the house bills on the unfinished business on pages one through four, House Bill 173 to 1301, be placed in the block to insist and request committees of conference. Any center desiring to remove a bill from the block, please do so after the clerk's read the number of the bill. The question is,

[04:02:20] shall the house bills on the unfinished business on pages one through four, House Bill 173 through House bill 1301 be placed in the block to insist and request committees of conference with the understanding that any senator desiring a bill to be removed from the block will do so after the clerk has read the number of the bill all in favor of that motion will say aye those opposed no the ayes have it the motion is agreed to the bills are now before us in the block the clerk

[04:02:50] will read the number of the bills. House Bill 173, House Bill 178, House Bill 308, House Bill 820, House Bill 931, House Bill 1041, House Bill 1186, House Bill 1207, House Bill 1301. The question is, shall the Senate insist and request committees of conference on the House bills in the block?

[04:03:28] All in favor, we'll record their votes for, record their vote, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[04:03:46] Ayes 40, no zero. Ayes 40, no zero. The Senate has insisted and requested committees of conference. On page four, House Bill 894, Senator Favola, the chair of the committee on education and Health on House Bill 894 has appointed Senators Boisco, Favola, and HED.

[04:04:12] Unfinished Business Senate, Senate Bill 108 has passed the House with a substitute. Senator from Western Fairfax. Madam President, I move that we accept the House substitute and or concur with

House substitutes speaking to that. Senator has the floor. Madam President, all the House substitute did

[04:04:48] was um just changed uh the language slightly so that um it made it clear in the policy that we don't have a prohibition on possession of cell phones we have a prohibition on the usage of cell phones from bell to bell and with that i hope it's agreed to the question is shall the senate concur with the house substitute for senate bill 108 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[04:05:25] desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the senate concurs senate bill 190 has passed the house with a substitute the senator from norfolk thank you madam president madam president i move that the senate with the recommendation that it be rejected

[04:06:00] i move that the house amendment be agreed to would the senator like to speak to that motion um it the house amendment adds a reenactment clause onto this bill with the recommendation that it be rejected the question is shall the senate concur with the house substitute for senate bill 190. all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk

[04:06:38] will close the roll i zero knows 40. i zero knows 40 the senate does not concur has bill 220 has passed the house with amendment the senator from richmond city yes madam president uh i move that uh the senate or madam president with the recommendation that it be rejected I move the House amendment be agreed to and speaking to that motion. Senator has the floor.

[04:07:10] Yes, Madam President. The House just simply seemed they wanted to put an amendment to push the date back to 2027, enacted in 2027, and I would just rather hash that out in conference. Thank you. With the recommendation that it be rejected, the question is, shall the Senate concur with the House amendment to Senate Bill 220?

[04:07:31] all in favor of that motion will record their votes i those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll zero knows 40. i zero knows 40. the senate does not concur senate bill 271 has passed the house with a substitute the senator from charlottesville but i move that we agree to the

[04:08:09] house substitute and speaking to that senator has the floor that this these amendments are the exact exact same like that described just a little bit ago when we were talking about changes to the house bill we'd agreed to the changes and we were put them on on her bill over here and on my bill over there so I hope you'll pass this bill the question is shall the Senate concur with the house substitute for Senate bill 271 all in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[04:08:45] Do any senators desire to change their vote? The clerk will close the roll. Ayes 32, noes 8. Ayes 32, noes 8. The Senate concurs. Senate Bill 333 has passed the House with a substitute. The senator

[04:09:12] from Tazewell. Thank you, Madam President. I move that the Senate concur with the House substitute.

[04:09:29] Speaking of that motion. Senator has the floor. Senate Bill 333 establishes a grant program to incentivize the capture and sequestration or beneficial use of methane from active and abandoned mines that would otherwise escape into atmosphere.

[04:09:44] And this substitute makes minor technical amendments at the request of the State Corporation Commission changes the administering agency from the SEC to the Virginia Department of Energy. I would ask that we would concur with the substitute.

[04:10:00] the question is shall the senate concur with the house substitute for senate bill 333 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 40 no zero the senate concurs senate bill 371 has passed the house with a substitute The senior senator from Prince William.

[04:10:33] Thank you, Madam President. We concur with the House substitute in speaking to the motion. The senator has the floor. Thank you very much, Madam President. The House substitute aligns with the actions we did in Senate, commerce, and labor. We had a couple amendments that aligned up with utility feedback and input based on definitions.

[04:10:54] So the substitute incorporates that language and now is consistent also with the House bill as we amended in the Senate. So the two versions are now identical and would move we accept the substitute. The question is, shall the Senate concur with the House substitute for Senate bill 371? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close

[04:11:32] the roll. Ayes 22, noes 18. Ayes 22, noes 18. The Senate concurs. Senate Bill 436 has passed the House, has Senate Bill 436 has passed the House with amendments. The senior senator from Henrico.

[04:11:58] Thank you Madam President. Madam President, I move that the Senate concur with the House amendments and speaking to that. Senator has the floor. Thank you Madam President. Madam President, the amendments provide clarity as it relates to one or more individuals in the work zone and that's simply what it does and I move passage the question is shall the Senate concur with the House amendments to Senate bill 436 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to

[04:12:37] change their vote the clerk will close the roll ayes 32 noes 8 ayes 32 noes 8 the Senate concurs Senate bill 437 has passed the house with a substitute the Senate senior senator from Henrico thank you madam president madam president I move that the Senate concur with the house substitute and speaking to that senator has the floor thank you madam president these amendments by request of

[04:13:16] vida it's no plows to the legislation and I move that we concur the question is shall the Senate concur with the House substitute for Senate Bill 437. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, Noes 1. Ayes 39, Noes 1. The Senate concurs. Senate Bill 479 has passed the highest with amendments. The

[04:13:55] senior senator from prince william i'm sorry this is from fairfax my apologies thank you madam president as a matter of fact fairfax was uh uh created out of prince william county so they came first that's exactly what i meant anyway you knew you knew that uh thank you i move uh madam president i move that we concur with the uh house uh amendments and speaking to that senator has the floor this is the stock corporation act that periodically has to be updated and uh made a few

[04:14:32] minor technical and clarifying changes over on the house side from the bill that passed out of here and i move that the bill pass or that the the house uh uh uh substitute be agreed to the question is shall the senate concur with the house amendments to senate bill 479 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted. Do any senators desire to change their vote? The clerk will close the

[04:15:04] roll. Ayes 40, no, zero. Ayes 40, no, zero. The Senate concurs. Senate Bill 518 has passed the House with a substitute. The junior senator from Virginia Beach. Thank you, Madam President. With the recommendation that it be rejected, I move that the House substitute be agreed to. And would the senator like to speak to that motion? Yes, I'm speaking to that. Senator has the floor. Thank you, Madam President. The House bill excludes work performed at non-governmental property used to provide broadband and other telecommunications services. The Senate bill includes public institutions

[04:15:43] of higher education at the state agency. There's some other technical different language in the Senate bill that needs to be updated, as well as the House bill had an additional subsection about public institutions of higher education for prevailing wage for contracts over five million trying to get this bill in the conference so we can work out those differences.

[04:16:04] With the recommendation that it be rejected, the question is, shall the Senate concur with a House substitute for Senate Bill 518? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[04:16:29] Zero, no's 40. Aye, zero, no's 40. The Senate does not concur. Senate Bill 536 is passed the House with a substitute. The Senator from Rockingham.

[04:16:45] Madam President, with the recommendation that it be rejected, I move that the House substitute be agreed to when speaking to that. Senator has the floor. Madam President, this bill was a very limited bill when it left the Senate dealing with prejudgment interests.

[04:17:03] The House did some substantial revisions and delivered a substitute that requires this bill to go to conference. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 536?

[04:17:26] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? any senators desire to change their vote. The clerk will close the roll. Ayes zero, noes 40. The Senate does not concur. Senate Bill 568 has passed the House with a substitute. The senator from Colonial Heights. Thank you, Madam President. I move that we concur with the House substitute and speaking to that.

[04:18:01] Senator has the floor. Madam President, when this bill left the Senate it was to direct the Department of Education to develop some a model policy for limiting instruction time involving screens in classrooms I think that's a great policy came out of the Senate unanimously the House Education Committee had a different view and they put a substitute on my bill which is the delegate from Roanoke's the chairman's bill and it's it's a good bill as well and that's why

[04:18:40] I'm gonna ask that the Senate concur with the house substitute the the bill as it's before you now you have already voted on it this bill came out unanimously out of the Senate as well and it just simply requires instruction concerning time spent using electronic devices such as computers cell phones and

other smart devices and the addictive potential thereof to be provided by public schools as prescribed by the Board of Education so it's a narrowed down version of what I originally wanted to do I don't think even if this were to

[04:19:16] go to conference we would get to a place that would involve asking or directing DOE to come up with model policies and so with that madam president I would ask that we concur with the House substitute so that this can continue moving them forward the question is shall the Senate concur with the House substitute for Senate bill 568 all in favor of that motion will record their votes aye those have put those opposed no are the senators ready to vote have all the

[04:19:53] senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 36, noes 4. Ayes 36, noes 4. The Senate concurs. Senate Bill 620, the House insists on its substitute substitute and request a committee of conference. Senator from Eastern

[04:20:24] Fairfax, page 13, Senator. Got it. Madam President, I move now the Senate bills on the unfinished business on pages 13 through 14. Senate Bill 620 to 688 be placed in a block to accede to request For committees of conference, any senator desiring to remove a bill from the block, please do so if the clerk has read the number of the bill.

[04:20:49] The question is, shall the Senate bills on the unfinished business on pages 13 through 14, Senate Bill 620 through Senate Bill 688, now be placed in the block to accede to the request for committees of conference, with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill.

[04:21:09] All in favor of that motion, we'll say aye. Those opposed, no. The ayes have it. motion is agreed to the bills are now before us in the block the clerk will read the number of the bills senate bill 620 senate bill 645 senate bill 688 the question is shall the senate accede to the request for committees of conference on the senate bills in a block all in favor will record their votes aye those opposed no are the senate senators ready to vote have all the senators voted do any

[04:21:44] senators desire to change their vote. Srinivasan. The clerk will close the roll. Ayes 40, noes 0.

[04:22:02] Ayes 40, noes 0. The Senate has acceded to the request for committees of conference. Conferees on the part of the Senate on Senate Bill 620, as named by the Chair of Rehabilitation and Social Services, Senator Von Valkenberg, Von Valkenberg, Saleem and Reeves. On Senate Bill 645,

[04:22:30] Conferees on the part of the Senate is named by the Chair of Agriculture, Conservation, and Natural Resources are Senators Surabell, Williams-Graves, and Pukorski. On Senate Bill 688, Conferees on the part of the Senate is named by the Chair of Privileges and Elections, Senator Rouse, or Senators Molkai, Surabell, and Bennett Parker.

[04:23:04] Senator from Eastern Fairfax. Do you need to do a reconsideration?

[04:23:29] Yeah, we've got to reconsider. the senior senator from Fairfax thank you madam president I move that we reconsider the vote by which HB 1481 failed it's on page 67 and I move that

[04:23:45] we reconsider that vote did the senator's motion also say having voted on

[04:24:16] the prevailing side senator yes it does the question is shall the vote by which House bill 1481 did not pass be reconsidered. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote?

[04:24:40] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The motion is agreed to.

[04:24:58] Madam President, could that bill now go by for the day? Without objection,

[04:25:03] House bill 1481 goes by for the day. The Senate will be at ease. The Senate will be in order.

[04:44:03] The Senator from Eastern Fairfax. Madam President, I would move that we recess until 2 25 and speak to that motion. Senator has the floor. Thank you Madam President.

[04:44:25] Ladies and gentlemen, we just need to take a quick recess to do a quick courts of justice meeting at my desk uh for some a couple retired judges and then we're going to come back knock out some conference reports hopefully the judge conference report will be one of those and then we can do the judicial election that's we need to do right now without objection the senate will be in recess the clerk will make an announcement the committee for courts of justice will meet

[04:44:55] immediately upon recess at the chair's desk the senate is in recess we will be taking up conference

[04:55:33] Committee reports. The first one is on page 13, Senate Bill 158. The senior senator from Loudoun. Madam President, I move that we adopt the conference, the committee conference report and speaking to that motion. Senator has the floor.

[04:56:07] Madam President, this is the conference report that contains the new judgeships that I think the body agreed upon in the Commonwealth of Virginia. It also looks at redistricting or we draw looks at is going to study the circuits in the 15th and the 20th judicial circuits it does not include the whether or not the Court of Appeals will be will be expanded or not in this in this particular bill and so I would move the body to adopt the conference committee report the question is shall the Senate adopt the conference committee report for Senate

[04:56:46] Bill 158. All those in favor of the motion will please record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The Senate adopts the conference committee report for Senate Bill 158. On page 2, conference committee report on House Bill 74, 75.

[04:57:19] Senator from Arlington. Thank you, Madam President. Madam President, I move that we adopt the conference committee report. I'm speaking to the motion. The Senator has the floor. Thank you, Madam President.

[04:57:34] The conference committee report is the Senate bill that was voted out of this body, a 39 to 0. As you might recall, this bill allows the use of prescribed medical oil, cannabis, in hospitals.

[04:57:49] the medical oil is already used in nursing homes permitted to be used in nursing homes and assisted living facilities and the bill sets up a task force to evaluate other potential uses of medical marijuana and the task force is also charged with looking at the intersection of federal requirements as it has they deal with controlled substances and their use in medical facilities with a report back. So that's essentially the conference that is the conference report and that the conference report is identical to the senate bill. So I renew my motion that the conference

[04:58:29] report be adopted. The question is the question is shall the senate adopt the conference committee report on HB 75? All in favor of that motion will please record their votes aye. Those opposed

no. are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 40 no zero eyes 40 no zero the conference committee

[04:59:08] report for hb 75 is adopted page 4 host bill 276 the senator from charlottesville madam president i move that the conference report be agreed to and speaking to the senator has the floor madam

[04:59:41] president this bill would have taken the this bill essentially adopts the how the Senate position that bar dues go no higher than 350 dollars a year the question is shall the Senate adopt the conference committee report on House bill 276 all in favor of that motion will please record their votes aye those opposed no are the senators ready to vote have all the senators voted do any

[05:00:12] senators desire to change their vote the clerk will close the roll I was 39 knows one eyes 39 knows one the Senate adopts the conference committee report for HB 276 page 6 conference committee report on house bill 584 the senator

[05:00:43] from Eastern Henrico thank you madam president I move that we adopt the conference committee report and speaking to that the senator has the floor thank Thank you so much, Madam President.

[05:01:02] In the conference report language, we clarify a mechanism in which the institution can, in association with the localities that are represented, identify the representation on the board, and I hope that we can move this language forward.

[05:01:19] The question is, shall the Senate adopt the conference committee report on HB 584? All in favor of that motion will please record their votes, aye. opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no 0.

[05:01:45] Ayes 40, no 0. The Senate adopts the conference committee report on HB 584. On page 6 has bill 625. The senior senator from Loudoun. Madam President, Madam President, I move that we adopt the conference committee report and speaking to that motion the senator has the floor this is the house cognate to my Senate bill and it does exactly the same things as the conference report we already passed and this is for folks who have long long-term serious illnesses

[05:02:23] like cancer and other things like that allowing them the opportunity to have a the option to have a prescription plan that caps or limits their prescription prices um from somewhere between 150 and 300 dollars a month so that they can budget and plan for the year how much they will have to pay every month and um to help to control costs for them madam president so they know what to expect and with that i move that we adopt the commerce committee report the question is shall the senate adopt the conference committee report on house bill 625 all in favor of the motion will please record their votes aye those opposed no

[05:03:00] are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 39 no zero eyes 39 no zero the senate adopts the conference committee report on hb 625 page 11 senate bill 74 the senior senator from prince

[05:03:37] william thank you madam president move that the conference report be adopted and speak to the motion the senator has the floor thank you matter president this is the bill on affordable housing giving localities the option to adopt affordable housing currently there's only a handful of localities that

have that authority this enables localities to have that option statewide and move the conference adoption the question is shall the Senate adopt the conference committee report for Senate bill 74 all in favor of the motion will record their votes I

[05:04:16] those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role I was 21 nose 19 eyes 21 nose 19 the Senate adopts the conference committee report for Senate bill 74 page 13 Senate bill 140 senior senator from Prince William

[05:04:50] thank you madam president move the conference report be adopted and speaking the motion. Senator has the floor. Thank you, Madam President. This, the conference report adopts the Senate version as it led to Senate Finance. This is regarding two standard hour mental health training provided by the Department of Fire programs, and so it simply adopts the Senate Finance substitute, providing the training within an enactment clause, and so move the the conference report be adopted the question is shall the Senate adopt the

[05:05:27] conference committee report for Senate bill 140 all in favor of that motion will please record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero the Senate adopts the conference

[05:05:50] committee report for Senate bill 140 returning to page 46 for the calendar I House Bill 1414.

[05:06:16] The senior senator from Loudoun. Thank you, Madam President. Madam President, I move that we reconsider the vote by which we pass this bill by for the day. The question is, shall the vote by which the Senate -- by which House Bill 1414 was passed by for the day be reconsidered?

[05:06:46] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the motion is agreed to senator from loudon um madam president i move that we reconsider vote by which we adopted the substitute from the committee of courts of justice the

[05:07:18] question is shall the vote by which the substitute from the committee for courts of justice was agreed to be reconsidered all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the motion is agreed to

[05:07:55] the vote is reconsidered thank you madam president madam president with the uh with the recommendation that we reject the committee the substitute from the committee of the courts of justice i move that we agree to the committee or the substitute from the committee on courts of justice with the recommendation that it be rejected the question is shall the shall the substitute from the committee on courts of justice be agreed to all in favor of that motion will say aye those opposed no the nose have it the the substitute is not agreed to senator from loudon

[05:08:31] i move that we waive the reading of the floor amendment floor substitute the question is shall the reading of the floor substitute now be waived all in favor of that motion will say aye those opposed no the ayes have it the reading of the floor amendment is waived senator from loudon madame president i move that we accept the floor substitute and speaking to that motion the senator has the floor okay madame president this is house bill 14 14. um this the floor substitute adds in some language that was

present in a bill that passed out of the senate i believe unanimously that includes some this this bill is about mandatory reporting this is delegate mcquinn's

[05:09:10] bill and this bill adds in some additional crimes that have to be mandatorily reported um and so with that and i have spoken to the patron and she is okay with these amendments matter president with that i would move that we uh accept the floor substitute the question is shall the floor substitute be agreed to all in favor of that motion will say aye those opposed no the ayes have it the floor substitute is agreed to senator from loudon thank you matter president matter president i believe this bill was previously explained whenever we passed it previously the additional amendments that i mentioned require mandatory

[05:09:45] reporters to report solicitation of a minor and sex offenders who are in violation of their sex offender rules and requirements by those people who are already mandatory reporters as outlined in the bill without any passage the question is shall house bill 1414 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40

[05:10:18] no zero. Ayes 40, no zero. House bill 1414 passes. President. Senator from Western Henrico. Thank you, Madam President. Madam President, having voted on the prevailing side by which we defeated House Bill 1013, I would like to reconsider that vote. Senator,

[05:10:42] what page is that? That's page 49. Did the senator say having voted on the

[05:11:05] prevailing side? I did. Page 49. The question is, shall the vote by which House Bill 1013

[05:11:42] did not pass be reconsidered? Madam President, Parliamentary Inquiry. Senator from Rockingham. Is this the first time or the second time this has been reconsidered? This is the first time, Senator. It sure feels like the fourth time. The question is, shall the vote by which House bill 1013 did not pass be reconsidered all in favor of the motion will record their votes aye

[05:12:20] those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote i closed it too soon the clerk will close the roll ayes 38 nose 2. ayes 38 knows to the motion is agreed to. Senator from Henrico. And Madam President I'm

[05:12:58] gonna ask that we take that by and speak into that. Senator has the floor. Really I just want to hear the fine senator speak about it again tomorrow. But the reason I voted against this bill is because there was a class three misdemeanor attached to it which I think is a very very excessive for a recreational crabber and we're gonna see if we can't fix that and make it so people can come together so that we're not pitting turtles against crabs but rather we're bringing them together and so I move that this goes by for the day.

[05:13:29] Without objection, House Bill 1013 goes by for the day. The chair recognizes a

[05:14:06] senator from Eastern Fairfax. Madam President, I would move that we recess until I think 3:25. Let's say 3:30, Senator. 3:35 to 3:35 and speaking to that motion. Senator has the floor. Thank you Madam President. Ladies and Senate we're waiting for the house to catch up to us they also got to have a they also have to think that they can't have meetings at the chair's desk like we can so they got to be less efficient so we had to wait for them do all that

[05:14:44] stuff before we do this judge election so 3:35 we'll be back get that done I think that's probably probably it for the day the Senate will be in recess

[05:14:53] until 3:35 to order the chair recognizes the senator from Eastern Fairfax the

[06:04:44] The Senate will be in order. Thank you, Madam President. Madam President, pursuant to Rule 13 of H.J.R. 29, the scheduling resolution, I move the special continuing joint order relating to judicial elections to be suspended until Friday, March 13th of 2026.

[06:05:02] And speaking to that motion. Senator has the floor. Thank you, Madam President. Apparently, there's been a breakthrough in Chesterfield after a long time. And so because of that, in order to avoid having two judicial elections, we need to go back and amend all the resolutions you have in front of you.

[06:05:18] and the courts of justice committees need to recertify candidates. And so we need to push all this to Friday so we have time to do all that. And that should take care of all business today. - The question is pursuant to rule 13 of HJR 29, the scheduling resolution, shall the special and continuing joint order relating to the judicial elections now be suspended until Friday, March 13th, 2026?

[06:05:44] All in favor of that motion will record their votes. I, those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[06:06:02] The clerk will close the roll. Ayes 40, no 0. The special and continuing joint order is suspended until Friday, March 13th. Senator from Eastern Fairfax.

[06:06:19] Madam President, I have special and one-time permission to move that we adjourn to tomorrow at 10:00 AM. senator we still need to do points of personal privilege oh darn okay before we hear the senator's motion all right is there any other business to come before the senate the senate the senator from senior senator from virginia beach and i rise for a brief point of personal privilege the senator

[06:06:57] has the floor madam president i rise today to recognize the life of pete smith of virginia Beach who passed away yesterday at the age of 86. Pete Smith was widely known as the godfather of the East Coast surfing. He was a pioneer of the surfing culture that helped define Virginia Beach. In the early 1960s he helped launch what would become the East Coast Surfing Championship, now the longest-running surfing contest in the world. He co-founded the first surf shop in Virginia Beach, helping introduce modern surfboards and growing the sport along

[06:07:35] the Atlantic Coast. Those who knew Pete remembered him not only for his influence on surfing, but for his kindness, enthusiasm, and the joy he brought to others, often summed up by his signature call, Cowabunga. His legendary, his legacy lives on in the generations of surfers and beachgoers who continue to enjoy the culture he helped create madam president I asked the Senate remember Pete Smith a Virginia Beach legend whose spirit will always ride the waves along our East Coast and as Pete would say cowabunga

[06:08:12] thank you the clerk will receive a message from the house sergeant at arms the Senate will receive it pursuant to Rule 13 of H.A.R. 29.

[06:08:48] The House of Delegates has suspended this special continuing during order related to judicial elections until Friday, March 13th. Having concluded for the morning hour, I request a concurrence of the Senate. Thank you, Senator. Thank you, Delegate. The Senate receives the message.

[06:09:07] The Chair recognizes the Senator from Washington. Thank you, Madam President. I rise for an announcement. Senator has the floor. I know. It is that time of year again. And tomorrow, from 8 to 9, Delegate Sewell and I will be joined by representatives from the Opioid Abatement Authority, DBHDS, and VDH in subcommittee room 600A on the 6th floor of the GAB to host our annual Revive Overdose Training and Naloxone Education.

[06:09:37] We hope that you would join us tomorrow. We're trying to get 100% of the General Assembly members trained on this life-saving education. We invite everyone to come, and if you want to bring your staff, please bring them, too. Even if you've had it before, it would be great for you to go and just re-up your education.

[06:09:57] Refresh your education. No teeth cleanings tomorrow. The chair recognizes the senator from Franklin County. Thank you, Madam President. I rise for an announcement. Senator has the floor. Madam President, members of the body, tomorrow we have the inaugural meeting of the Virginia Motorsports Caucus.

[06:10:15] It'll be on the seventh floor. It's going to begin at 8 a.m. now that we've kind of moved the dates or the times from which we're going into session, both House and Senate. It will be on the 7th floor South Meeting Room. Just remember, we have 25 racetracks that are active in the Commonwealth of Virginia, which means they probably are in one of your districts.

[06:10:33] It's important to maintain that, especially the grassroots in our rural areas, urban areas. Racing is big. We have four Super Bowls a year, Bristol, Martinsville, Richmond. And y'all, we're going to have a race next weekend, a week from Sinead at South Boston Motor Speedway.

[06:10:49] It's called the King of the Modifieds. My race team will be there. I'll be there. I've got a suite. You all are invited, and I will pay for the food and drink. You are welcome. I'm sorry? Free motor oil for everybody, just because Rouse said so, all right?

[06:11:10] Yeah. Yeah. That's what I'm talking about. But again, Virginia Motorsports Caucus, you'll have track owners there, race series owners there. A lot of great Virginians to me. That will be tomorrow at 8 a.m. on the 7th floor, South Meeting Room, and South Boston Speedway, King of the Modifieds, next Saturday.

[06:11:28] Race starts at 2. I've got a suite in Turn 1. Plenty of seats, plenty of drinks, plenty of eats. Love to see you come out. Just let me know, and we'll be there, and we'll see you there. Thank you, Madam President. Is there any other business to come before the Senate? The clerk will report any announcements on the desk.

[06:11:46] Tomorrow, Thursday, March 12th, the Democratic Caucus will meet 45 minutes before session in Senate Room 1. of the Capitol, the Republican caucus will meet 30 minutes before session in Senate Room 2 of the Capitol. Senator from Eastern Fairfax. Thank you, Madam President. Now I finally have the special one-time permission to move that we adjourn until 10 a.m. tomorrow. The question is, shall the Senate

[06:12:24] adjourn until 10 a.m. tomorrow? All in favor of that motion will say aye. Those opposed, no. The eyes have it. The Senate stands adjourned until 10 a.m. tomorrow. Be sure to stay connected with live sessions, catch up on past meetings, and explore our full archives anytime on the Senate

[06:12:58] of Virginia's YouTube channel. This is the Senate of Virginia, Richmond, Virginia, Senate Chamber.

[06:15:09] This is the Senate of Virginia, Richmond, Virginia.